Authorities captured in the summaries

Precedents used in summaries that mention theft, assessment, section 126 or section 135. Ranked by the number of distinct citing summaries. · 17 October 2026

1364	265	585	300	12	7
SUMMARIES IN THIS CUT	WITH CAPTURED AUTHORITIES	TOTAL CITATIONS	DISTINCT AUTHORITIES	USED IN 5+ CASES	USED IN 10+ CASES

Drawn from the **authorities** field of summaries whose JSON, after the summary's own case id is removed, contains the word **theft** (anti-theft alone does not count), the word **assessment**, or the digits **126** or **135** as a whole number. Of 3826 summaries, 1364 are in this cut (theft 693, assessment 1142, 126 304, 135 319; a summary may match more than one term). Name, reporter and Indian Kanoon variants of the same decision are clustered, so each authority is counted once. Rank is by distinct citing summaries, not raw mentions. Authorities used in two or more summaries are set out in full; those cited once appear in a compact register at the end of each court table. Where one summary omitted the proposition, it is taken from the richer records of the same authority. The full-corpus reports of 5 September 2026 and 23 September 2026, and the unfiltered consolidated table, are kept. Allahabad High Court — 88 authorities, 301 citations across 208 cases · Supreme Court of India — 177 authorities, 247 citations across 100 cases · Other courts — 35 authorities, 37 citations across 28 cases.

Leading — 10 or more cases Extensive — 5 to 9 cases Recurring — 2 to 4 cases Isolated — a single case

Most extensively used authorities (all forums)

Every authority invoked in five or more summaries in this cut. The case count is distinct citing summaries.

#	CASES	AUTHORITY	LEADING PROPOSITION TAKEN FROM IT
1	119	**Ashok Kumar v. State of U.P.** All HC 2008 (6) ADJ 660 (DB)	Assessment on account of theft, though to some extent covered by Section 135, is made under Section 126, and appeal therefore lies under Section 127.
2	20	**Shishir Jain v. Paschimanchal Vidyut Vitran Nigam Ltd. and another** All HC 2017 (3) AWC 3084	If there is no final assessment, the consumer cannot be compelled to deposit the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, demand notices are not sustainable.
3	14	**M/s Mohit Paper Mills Ltd. & Anr. v. PVVNL & Ors.** All HC 2011 (9) ADJ 239	Cited by the petitioner for paragraphs 78, 79 and 80; not separately discussed in the Court's reasoning.
4	12	**Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.** All HC 2009 (1) ADJ 430 (DB)	Clause 5.6(c)(iii) requires the licensee to apprise the consumer of, and obtain his agreement to, the testing venue (licensee's lab / independent lab / Electrical Inspector) before a sealed meter is tested; the clause operates harshly and is construed strictly, and failure to give a bold, printed notice of the option renders the proceedings illegal.

#	CASES	AUTHORITY	LEADING PROPOSITION TAKEN FROM IT
5	10	**M/s Paliwal Alloys (Pvt.) Ltd. v. U.P. Power Corporation Ltd. & Others** All HC 2009 (7) ADJ 455 (DB)	Assessment under Section 126 is also to be made in theft cases, and a person has a right of appeal.
6	10	**Chairman, West Bengal State Electricity Board & Ors. v. Syed Mukbul Hossain & Ors.** SC (2009) 2 SCC 727	In the matter of theft of electrical energy, the assessment is referable to Section 126 and appeal is to be filed under Section 127.
7	10	**Executive Engineer, Southern Electricity Supply Company of Orissa Ltd. (SOUTHCO) v. Sri Seetaram Rice Mill** SC (2012) 2 SCC 108	Section 126 requires the assessing officer to inspect, form a conclusion of unauthorised use, provisionally assess, serve the order, hear objections, and pass a final assessment; a Section 127 appeal lies only against that final order. The High Court may entertain a writ against a provisional assessment on a jurisdictional issue, but must then remand merits to the assessing officer and not determine the demand.
8	9	**Paschimanchal Vidyut Vitran Nigam Ltd. & Others v. The Appellate Authority/Addl. Commissioner & Anr.** All HC Civil Misc. Writ Petition No. 4222 of 2009, decided 26.03.2010	The 2003 Act does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso presupposes such an assessment; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the case is theft (paragraph 8.1) or unauthorised use (paragraph 6.8).
9	8	**Narinder Chand Hem Raj & Others v. Lieutenant Governor, Administrator, Union Territory, Himachal Pradesh** SC 1971 AIR 2399	As applied in the quoted Coordinate Bench: no direction could have been issued against the provisions of the Act and the Code by the Ombudsman.
10	5	**U.P. Power Corporation Ltd. v. Ombudsmen (Writ-C No. 1003604 of 2008)** All HC Writ-C No. 1003604 of 2008, decided 21.03.2023	Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.
11	5	**U.P. Power Corporation Ltd. v. Ombudsmen and 2 others** All HC Writ-C No. 1003603 of 2008, decided 21.03.2023	Ombudsman order dated 23.05.2008 set aside: minimum monthly/fixed charges under paragraphs 3.8 and 3.9 and the Tariff Order (s.24, Reforms Act, 1999) cannot be waived; a consumer prevented from using supply must seek permanent disconnection; the Ombudsman cannot direct contrary to the Act and the Code (Narinder Chand Hem Raj).
12	5	**Whirlpool Corporation v. Registrar of Trade Marks, Mumbai** SC (1998) 8 SCC 1	Alternative statutory remedy does not bar a writ under Article 226 in at least three contingencies — enforcement of fundamental rights, violation of natural justice, or an order wholly without jurisdiction / where the vires of an Act is challenged; exhaustion is a rule of policy, convenience and discretion, not of law.

Table 1 — Allahabad High Court

88 authorities · 301 citations · 8 used in 5+ cases · 24 used in 2+ cases

Allahabad High Court authorities invoked in this cut, ranked by distinct citing summaries. Most cited: Ashok Kumar v. State of U.P. (119), Shishir Jain v. Paschimanchal Vidyut Vitran Nigam Ltd. and another (20) and M/s Mohit Paper Mills Ltd. & Anr. v. PVVNL & Ors. (14).

1 Ashok Kumar v. State of U.P. 119 cases

2008 (6) ADJ 660 (DB) · Allahabad High Court (DB)

Followed 37 · Relied on 3 · Distinguished 4 · Referred 6 · Not recorded 69

PROPOSITION 1 · USED IN 8 CASES

Assessment on account of theft, though to some extent covered by Section 135, is made under Section 126, and appeal therefore lies under Section 127.

PROPOSITION 2 · USED IN 4 CASES

Paras 56 to 64 consider the provisions of the Electricity Supply Code, 2005 to be followed when assessing theft of electricity; a fresh final assessment is to meet the consumer's objections with reasons in that light.

PROPOSITION 3 · USED IN 2 CASES

Before a conclusion of unauthorised use under s.126, the consumer must be told the manner of the alleged use and given an opportunity of defence; a citizen cannot be indicted of unauthorised use (which may also be an offence under s.135) on the vagaries of the licensee's officers. Stern measures against theft do not justify condemnation without that minimum hearing (paras 56–60).

PROPOSITION 4 · USED IN 2 CASES

Paras 56-64 set out the Code 2005 procedure to be followed for a theft assessment - recording of satisfaction, a proper provisional assessment, opportunity and a reasoned final order.

+34 further formulations in the citing summaries, to the same effect.

SCJ-040 SCJ-048 SCJ-051 SCJ-057 SCJ-059 SCJ-061 SCJ-069 SCJ-070 SCJ-071 SCJ-111 SCJ-112 SCJ-117 SCJ-121 SCJ-154 SCJ-159 SCJ-176 SCJ-189 SCJ-192 SCJ-193 SCJ-285 SCJ-286 SCJ-630 SCJ-635 SCJ-644 SCJ-674 SCJ-710 SCJ-753 SCJ-825 SCJ-869 SCJ-1001 SCJ-1060 SCJ-1207 SCJ-1226 SCJ-1227 SCJ-1236 SCJ-1249 SCJ-1250 SCJ-1251 SCJ-1254 SCJ-1329 SCJ-1353 SCJ-1354 SCJ-1411 SCJ-1414 SCJ-1424 SCJ-1426 SCJ-1436 SCJ-1438 SCJ-1439 SCJ-1442 SCJ-1443 SCJ-1446 SCJ-1447 SCJ-1449 SCJ-1454 SCJ-1457 SCJ-1462 SCJ-1469 SCJ-1584 SCJ-1590 SCJ-1595 SCJ-1603 SCJ-1606 SCJ-1613 SCJ-1618 SCJ-1620 SCJ-1709 SCJ-1715 SCJ-1732 SCJ-1733 SCJ-1734 SCJ-1735 SCJ-1736 SCJ-1744 SCJ-1765 SCJ-1779 SCJ-1815 SCJ-1849 SCJ-1869 SCJ-1878 SCJ-1879 SCJ-1888 SCJ-1889 SCJ-1907 SCJ-1915 SCJ-1918 SCJ-1922 SCJ-1923 SCJ-1924 SCJ-1925 SCJ-1938 SCJ-1982 SCJ-1987 SCJ-2014 SCJ-2015 SCJ-2195 SCJ-2197 SCJ-2213 SCJ-2306 SCJ-2314 SCJ-2317 SCJ-3096 SCJ-3107 SCJ-3108 SCJ-3109 SCJ-3110 SCJ-3111 SCJ-3112 SCJ-3113 SCJ-3114 SCJ-3147 SCJ-3149 SCJ-3165 SCJ-3166 SCJ-3179 SCJ-3183 SCJ-3209 SCJ-3221 SCJ-3309

2 Shishir Jain v. Paschimanchal Vidyut Vitran Nigam Ltd. and another 20 cases

2017 (3) AWC 3084 · Allahabad High Court

Followed 13 · Not recorded 7

PROPOSITION 1 · USED IN 6 CASES

If there is no final assessment, the consumer cannot be compelled to deposit the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, demand notices are not sustainable.

PROPOSITION 2 · USED IN 4 CASES

If there is no final assessment, the consumer cannot be compelled to deposit the amount of the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, notices demanding that amount are unsustainable (para 16).

PROPOSITION 3 · USED IN 1 CASE

If there is no final assessment, the consumer cannot be compelled to deposit the amount of a provisional assessment; without a final assessment after considering the objection and giving opportunity of hearing, the consumer cannot be compelled to deposit any amount.

PROPOSITION 4 · USED IN 1 CASE

If there is no final assessment after considering the objection and giving the consumer an opportunity of hearing, the consumer cannot be compelled to deposit the provisional assessment, and demand notices founded on that course are unsustainable.

+2 further formulations in the citing summaries, to the same effect.

SCJ-2462 SCJ-2567 SCJ-2583 SCJ-2628 SCJ-2649 SCJ-2652 SCJ-2718 SCJ-3219 SCJ-3220 SCJ-3224 SCJ-3225 SCJ-3226 SCJ-3227 SCJ-3228 SCJ-3230 SCJ-3234 SCJ-3236 SCJ-3246 SCJ-3250 SCJ-3252

3 M/s Mohit Paper Mills Ltd. & Anr. v. PVVNL & Ors. 14 cases

2011 (9) ADJ 239 · Allahabad High Court

Followed 5 · Relied on 1 · Referred 8

PROPOSITION 1 · USED IN 7 CASES

Cited by the petitioner for paragraphs 78, 79 and 80; not separately discussed in the Court's reasoning.

PROPOSITION 2 · USED IN 1 CASE

Use of electricity through a tampered meter constitutes 'unauthorised use of electricity' under s.126 Explanation (b), for which assessment can be made, while simultaneously constituting theft under s.135(1)(d), permitting parallel criminal proceedings.

PROPOSITION 3 · USED IN 1 CASE

Cited by the petitioner for the contention that the 4 July 2019 show-cause notice was not in accordance with section 126; the Court did not apply or extract its ratio and left any such objection to a reply before the Assessing Officer.

PROPOSITION 4 · USED IN 1 CASE

Clauses 8.1 and 8.2 of the Supply Code, 2005 (not Clause 6.8) govern assessment where theft of electricity under s.135 is alleged; the specific provision prevails over the general where two provisions cover overlapping fields.

+4 further formulations in the citing summaries, to the same effect.

SCJ-051 SCJ-059 SCJ-069 SCJ-111 SCJ-121 SCJ-3107 SCJ-3108 SCJ-3109 SCJ-3110 SCJ-3111 SCJ-3112 SCJ-3113 SCJ-3114 SCJ-3209

4 Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. 12 cases

2009 (1) ADJ 430 (DB) · Allahabad High Court (DB)

Followed 5 · Relied on 1 · Distinguished 1 · Referred 2 · Not recorded 2 · petitioner's reliance held misconceived on these facts 1

PROPOSITION 1 · USED IN 1 CASE

Clause 5.6(c)(iii) requires the licensee to apprise the consumer of, and obtain his agreement to, the testing venue (licensee's lab / independent lab / Electrical Inspector) before a sealed meter is tested; the clause operates harshly and is construed strictly, and failure to give a bold, printed notice of the option renders the proceedings illegal.

PROPOSITION 2 · USED IN 1 CASE

Clause 5.6(c)(iii) requires the consumer's agreement for the choice of testing laboratory (licensee's/independent/Electrical Inspector); this being a harsh provision against the consumer must be construed strictly, and failure to apprise the consumer of this right renders the meter-sealing/testing proceedings irregular and illegal.

PROPOSITION 3 · USED IN 1 CASE

Clause 5.6(c) requires the consumer's agreement for testing at the licensee's lab or an independent lab; failure to apprise the consumer of the right to independent testing (where tampering was found only via a subsequent lab test) renders the sealing/assessment proceedings irregular and illegal.

PROPOSITION 4 · USED IN 1 CASE

Basis of the interim order dated 28 October 2009 staying the assessment proceedings; also relied on by the petitioner for the consumer's right, under Paragraph 5.6 of the Supply Code, to have the meter tested by an independent agency. Said to have been affirmed by the Apex Court.

+5 further formulations in the citing summaries, to the same effect.

SCJ-064 SCJ-071 SCJ-114 SCJ-126 SCJ-153 SCJ-161 SCJ-552 SCJ-805 SCJ-825 SCJ-1060 SCJ-2727 SCJ-2858

5 M/s Paliwal Alloys (Pvt.) Ltd. v. U.P. Power Corporation Ltd. & Others 10 cases

2009 (7) ADJ 455 (DB) · Allahabad High Court (DB)

Followed 10

PROPOSITION 1 · USED IN 7 CASES

Assessment under Section 126 is also to be made in theft cases, and a person has a right of appeal.

PROPOSITION 2 · USED IN 1 CASE

Theft of electricity under s.135 is also 'unauthorised use of electricity' for which assessment under s.126 is contemplated and mandatory; the s.135(1A) third proviso (restoration on payment of the 'assessed amount') presupposes a s.126 assessment; a Supply Code procedural provision cannot take away the substantive s.127 right of appeal.

PROPOSITION 3 · USED IN 1 CASE

Assessment under Section 126 is also to be made in theft cases and a person has a right of appeal (para 28, quoted).

PROPOSITION 4 · USED IN 1 CASE

Assessment under Section 126 is also to be made in theft cases, and the consumer has a right of appeal.

SCJ-069 SCJ-111 SCJ-3107 SCJ-3108 SCJ-3109 SCJ-3110 SCJ-3111 SCJ-3112 SCJ-3113 SCJ-3114

6 Paschimanchal Vidyut Vitran Nigam Ltd. & Others v. The Appellate Authority/Addl. Commissioner & Anr. 9 cases

Civil Misc. Writ Petition No. 4222 of 2009, decided 26.03.2010 · Allahabad High Court

Followed 9

PROPOSITION 1 · USED IN 7 CASES

The 2003 Act does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso presupposes such an assessment; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the case is theft (paragraph 8.1) or unauthorised use (paragraph 6.8).

PROPOSITION 2 · USED IN 1 CASE

The 2003 Act's scheme does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso (restoration of supply on deposit of the 'assessed amount') presupposes an assessment under Section 126, covering all categories of unauthorised use including theft; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the theft assessment was correctly made.

PROPOSITION 3 · USED IN 1 CASE

The 2003 Act does not exclude a Section 126 assessment in theft cases; Section 135(1A) third proviso (restoration on deposit of the assessed amount) presupposes such an assessment; the Section 127 appellate power is co-extensive with the assessing authority's and extends to whether a theft assessment under paragraph 8.1 (or unauthorised use under paragraph 6.8) was correctly made.

SCJ-069 SCJ-3107 SCJ-3108 SCJ-3109 SCJ-3110 SCJ-3111 SCJ-3112 SCJ-3113 SCJ-3114

7 U.P. Power Corporation Ltd. v. Ombudsmen (Writ-C No. 1003604 of 2008) 5 cases

Writ-C No. 1003604 of 2008, decided 21.03.2023 · Allahabad High Court

Followed 5

PROPOSITION 1 · USED IN 5 CASES

Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.

SCJ-490 SCJ-491 SCJ-492 SCJ-493 SCJ-494

8 U.P. Power Corporation Ltd. v. Ombudsmen and 2 others 5 cases

Writ-C No. 1003603 of 2008, decided 21.03.2023 · Allahabad High Court

Followed 5

PROPOSITION 1 · USED IN 5 CASES

Ombudsman order dated 23.05.2008 set aside: minimum monthly/fixed charges under paragraphs 3.8 and 3.9 and the Tariff Order (s.24, Reforms Act, 1999) cannot be waived; a consumer prevented from using supply must seek permanent disconnection; the Ombudsman cannot direct contrary to the Act and the Code (Narinder Chand Hem Raj).

SCJ-490 SCJ-491 SCJ-492 SCJ-493 SCJ-494

9 M/s Modern Rice Mill v. Madhyanchal Vidyut Vitran Nigam Ltd. & Another 4 cases

2012 (1) ADJ 296 · Allahabad High Court

Followed 4

PROPOSITION 1 · USED IN 1 CASE

Clause 5.6(d) mandates a specific procedure before meter testing — information to the consumer of the proposed testing date, an opportunity to be present (personally or through a representative), obtaining signature if present, and a right to dispute the testing under Clause 5.6(c).

PROPOSITION 2 · USED IN 1 CASE

A meter manufacturer's own lab cannot be an 'independent laboratory'; testing by the manufacturer amounts to making a person judge in his own cause, given its commercial interest in defending its product's tamper-proof reputation.

PROPOSITION 3 · USED IN 1 CASE

A report of a laboratory that is not independent — in particular the meter manufacturer's own lab — cannot be relied upon; the manufacturer cannot be a judge in its own cause and its lab is not an 'independent laboratory'.

PROPOSITION 4 · USED IN 1 CASE

Same Clause 5.6 meter-testing requirement before finalising an assessment premised on a defective/missing meter.

SCJ-071 SCJ-114 SCJ-126 SCJ-161

10 Sri Bhagwan Gupta v. Kanpur Electricity Supply Company Ltd. & others 3 cases

2005 (2) AWC 1269 · Allahabad High Court

Followed 1 · Distinguished 2

PROPOSITION 1 · USED IN 1 CASE

Held (in the petitioner's submission) that the pre-2007 rate of one-and-half times the tariff under Section 126(5)/(6) applies where the cause of action (theft) arose before the amendment.

PROPOSITION 2 · USED IN 1 CASE

In a theft billing, assessment is at one-and-a-half times the tariff under Section 126(6), not under paragraph 6.16.2 of the 2002 Code; Section 126(6) prevails over paragraph 6.17.2.

PROPOSITION 3 · USED IN 1 CASE

On use of the maximum period where the actual period of unauthorised use cannot be established.

SCJ-047 SCJ-211 SCJ-640

11 Kamil v. State of U.P. & Others 3 cases

2016 (6) ADJ 11 (DB) · Allahabad High Court

Followed 1 · Relied on 2

PROPOSITION 1 · USED IN 1 CASE

Where there is nothing on record to suggest the consumer was provided any provisional assessment bill and opportunity to file objections, or any date fixed for hearing his view point as prescribed under Para 6.8(b)(2) of the Code, 2005, the recovery cannot stand.

PROPOSITION 2 · USED IN 1 CASE

Cited by the petitioner in support of the contention that a demand notice issued without a final assessment after opportunity of hearing is contrary to the Electricity Supply Code, 2005.

PROPOSITION 3 · USED IN 1 CASE

Same procedural-fairness principle for s.126/Clause 8.1 assessment.

SCJ-117 SCJ-1987 SCJ-3065

12 Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. (Civil Misc. Writ Petition No. 55384 of 2009) 3 cases

Writ Petition No. 55384 of 2009, decided 30.05.2014 · Allahabad High Court (Division Bench)

Followed 2 · Relied on 1

PROPOSITION 1 · USED IN 1 CASE

Clauses 5.6 and 5.9 of the U.P. Electricity Supply Code, 2005 read together treat a meter tampered by the consumer as a defective meter; Clause 5.6 is therefore attracted and the licensee's contention that it is not is incorrect.

PROPOSITION 2 · USED IN 1 CASE

A Division Bench decision (dated 30.05.2014, against the same DVVNL) settling the consumer's Clause 5.6(c)(iii) rights on meter-testing choice and procedure.

PROPOSITION 3 · USED IN 1 CASE

Clause 5.6 applies to tampered meters too and the Clause 5.6(c)(iii) testing-venue option must be offered before testing.

SCJ-161 SCJ-2853 SCJ-3158

13 Vinod Kumar Agarwal v. State of U.P. & Others 3 cases

Writ-C No. 24772 of 2012, decided 10 July 2012 · Allahabad High Court

Followed 1 · Relied on 2

PROPOSITION 1 · USED IN 1 CASE

No recovery certificate is to be issued until a final assessment is made in a theft case after a reasonable opportunity of hearing under sub-section (3) of Section 126 of the Electricity Act, 2003 (the Section 126(3) order to be passed within thirty days of service of the provisional assessment); recoveries already issued without a final assessment are to be withdrawn - the Court reproducing the Chairman-cum-Managing Director, UPPCL's compliance order dated 30 June 2012.

PROPOSITION 2 · USED IN 1 CASE

No recovery certificate is to be issued until a final assessment is made under Section 126; even absent objection, Section 126(3) requires the Executive Engineer to record service of the provisional assessment order and make a reasoned final assessment, and the Managing Director, UPPCL was directed (order dated 30.6.2012) to withdraw recoveries issued without final assessment.

PROPOSITION 3 · USED IN 1 CASE

No recovery certificate is to be issued until a final assessment is made under section 126; even absent objection, section 126(3) requires the Executive Engineer to record service of the provisional assessment and make a reasoned final assessment. The Managing Director, UPPCL's compliance order of 30.6.2012 directed withdrawal of recoveries issued without a final assessment.

SCJ-1982 SCJ-1985 SCJ-3166

14 Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. and another 2 cases

2009 (2) AWC 1189 · High Court of Judicature at Allahabad

Followed 1 · Distinguished 1

PROPOSITION 1 · USED IN 1 CASE

Under Clause 5.6(c)(iii) a sealed defective meter is tested as agreed by the consumer; the consumer has a right to independent testing and the licensee a corresponding duty to apprise him, failing which the sealing proceedings are irregular and illegal; after sealing, a notice (in bold capitals) must be served for the consumer to exercise the testing option, and the resulting test report is final and binding.

PROPOSITION 2 · USED IN 1 CASE

Not stated in this judgment; cited with the 2002 Code theft definition.

SCJ-637 SCJ-2853

15 Ajit Singh @ Muraha v. State of U.P. and others 2 cases

2006 (56) ACC 433 · Allahabad High Court (Full Bench)

Followed 2

PROPOSITION 1 · USED IN 1 CASE

There can be no interference with investigation or order staying arrest unless a cognizable offence is not ex-facie discernible from the FIR or a statutory restriction operates on the power of the police to investigate.

PROPOSITION 2 · USED IN 1 CASE

Reiterates the Bhajan Lal/Satya Pal standard that FIR quashing/stay of arrest is warranted only where no cognizable offence is ex-facie discernible or a statutory restriction on investigation exists.

SCJ-102 SCJ-3081

16 Kunwar Sarvesh Kumar Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. and Others 2 cases

2012 (2) ADJ 509 · High Court of Judicature at Allahabad

Followed 1 · Distinguished 1

PROPOSITION 1 · USED IN 1 CASE

On a consumer's acquittal in a theft case, the demand/assessment made by the licensee comes to an end and the connection is to be restored.

PROPOSITION 2 · USED IN 1 CASE

In theft cases, the Clause 8.1 assessment procedure of the Supply Code, 2005 applies.

SCJ-111 SCJ-2227

17 Pankaj Kumar v. Kanpur Electric Supply Company and others 2 cases

Civil Misc. Writ Petition No. 58317 of 2005, 23.9.2005 · Allahabad High Court (Single Judge)

Followed 1 · Relied on 1

PROPOSITION 1 · USED IN 1 CASE

Interpreting Section 126(6), assessment ought to have been made at one-and-a-half times the tariff and not three times as per the U.P. Electricity Supply Code, 2002.

PROPOSITION 2 · USED IN 1 CASE

On an identical issue, assessment of unauthorised use/theft is at one-and-a-half times under Section 126(6), not at thrice the tariff under the 2002 Code.

SCJ-678 SCJ-698

18 Rituraj v. State of U.P. and 3 Others 2 cases

Writ-C No. 35477 of 2016, decided on 14 December 2017 · Allahabad High Court

Referred 1 · Not recorded 1

PROPOSITION 1 · USED IN 1 CASE

The petitioner relied on this decision, with the Electricity Supply Code, 2005, for the submission that the order of 3.2.2023 and the disconnection from 30.1.2023, without a final assessment after the provisional assessment notice of 4.6.2021, were unsustainable. The judgment does not recite what Rituraj held. The Court did not apply it; the writ was dismissed as infructuous.

SCJ-3292 SCJ-3486

19 Sandeep Kesarwani v. State of U.P. and others 2 cases

2014(2) ADJ 442 (DB) · High Court of Judicature at Allahabad

Followed 2

PROPOSITION 1 · USED IN 1 CASE

In a theft-of-electricity case an assessment under Section 126 of the Electricity Act, 2003 must be made even where an FIR under Section 135 is lodged and the trial is pending; unauthorised use of electricity is the genus and Section 135 theft a species, and the Special Court determines the civil liability, with further action under Section 154(6).

PROPOSITION 2 · USED IN 1 CASE

Theft under Section 135 is a species of the 'unauthorised use of electricity' under Section 126; assessment under Section 126 is to be made even where an FIR under Section 135 is lodged and trial is pending, the Special Court determining civil liability with further action under Section 154(6).

SCJ-2198 SCJ-2636

20 Sandeep Kesarwani v. State of U.P. and others 2 cases

Writ-C No. 69101 of 2013 (Allahabad HC, DB), decided 11.02.2014 · High Court of Judicature at Allahabad

Relied on 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Even where an FIR under Section 135 (theft) is lodged, an assessment under Section 126 can be made; Sections 126 and 135 must be interpreted harmoniously to give effect to the object of the Act, and no Apex Court ratio precludes a Section 126 assessment in theft cases.

PROPOSITION 2 · USED IN 1 CASE

Cited by the licensee. The order sets out no holding from that decision, and this Court did not apply it.

SCJ-2224 SCJ-3293

21 Satya Pal v. State of U.P. and others 2 cases

2000 Cr.L.J. 569 · Allahabad High Court (Full Bench)

Followed 2

PROPOSITION 1 · USED IN 1 CASE

Same FIR-interference standard as Ajit Singh @ Muraha (earlier Full Bench).

PROPOSITION 2 · USED IN 1 CASE

Same standard as above (earlier Full Bench).

SCJ-102 SCJ-3081

22 Somai v. U.P. Power Corporation Ltd. 2 cases

Writ-C No. 47278 of 2010, judgment dated 3.3.2023 · Allahabad High Court

Relied on 2

PROPOSITION 1 · USED IN 2 CASES

Relied on by the petitioner, who prayed that this writ be disposed of in the same terms; the Court did not recite Somai's holding or say it was following that order.

SCJ-3073 SCJ-3079

23 Wig Brothers (Builders & Engineers) (P) Ltd. & Anr. v. Union of India & Ors. 2 cases

(2003) 3 Company Law Journal 328 (Alld.) · High Court of Judicature at Allahabad

Relied on 2

PROPOSITION 1 · USED IN 1 CASE

Payment of interest is a necessary corollary to the retention of the amount; it is neither penal nor confiscatory.

PROPOSITION 2 · USED IN 1 CASE

Payment of interest is a necessary corollary to the retention of an amount; it is neither penal nor confiscatory.

SCJ-055 SCJ-1266

24 Writ-C No. 14162 of 2023 2 cases

Writ-C No. 14162 of 2023 · High Court of Judicature at Allahabad

Followed 1 · Not recorded 1

PROPOSITION 1 · USED IN 1 CASE

Final assessment and consequential recovery are quashed where Clause 6.8 procedure is not followed, with liberty to proceed afresh in accordance with law and a direction to communicate the order to the DISCOM Managing Director.

SCJ-3446 SCJ-3448

Cited in a single case (64 authorities — included for completeness)

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
25	**Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Limited and another** Civil Misc. Writ Petition No.1545 of 2009, decided 15.1.2009 High Court of Judicature at Allahabad	On meter testing: after sealing the meter the Nigam must serve a notice intimating the consumer to exercise his option to get the meter tested by the Electrical Inspector or by an approved outside agency, and once the option is exercised a date must be fixed for testing in the consumer's presence.	SCJ-2213
26	**Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.** 2009 (74) ALR 701 Allahabad High Court (Division Bench)	Under the 2003 regime (Clauses 5-6 of the Code 2005) the consumer likewise has a right to have a disputed meter tested by the Electrical Inspector, the Nigam's lab or an independent agency, and must be given notice of that option.	SCJ-167
27	**Smt. Chandrawati v. U.P. State Electricity Board** 1986 All LJ 1451 Allahabad High Court (Division Bench)	Where no notice of demand was admittedly served, the consumer is entitled to a mandamus restraining recovery under the demand and recovery certificates.	SCJ-170
28	**M/s Citi Hotel v. Commissioner, Lucknow Division and Others** AIR 2009 (All.) 137 High Court of Judicature at Allahabad	Cited by the petitioner for the proposition that an acquittal ends the licensee's demand and requires restoration.	SCJ-2227
29	**M/s Hasan Steel Pvt. Ltd. v. Pashchimanchal Vidyut Vitran Nigam Ltd.** 2008 (7) ADJ 104 Allahabad High Court	Relied on by the petitioner with Clause 8.2(x)(g) and (h); the Court did not discuss the decision.	SCJ-3201
30	**Smt. Karuna Jaiswal v. State of U.P.** 2018 (9) ADJ 107 (DB) (LB) Allahabad High Court (DB) (Lucknow Bench)	Bench decision cited in the same catena on natural justice in disciplinary inquiries; no separate holding extracted.	SCJ-548
31	**M/s KSS Electrodes Private Limited v. State of U.P. and 2 others** Writ - C No. 13786 of 2023, order dated 9.5.2023 Allahabad High Court	Where an efficacious alternative remedy lies to the Consumer Grievance Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005, the writ petition is disposed of with a direction that an application under the Code filed within a short window be decided in accordance with law on merits within six weeks, ignoring delay and laches, after opportunity to all stakeholders.	SCJ-3251

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
32	**Smt. R.S. Khan v. State of U.P. & Ors.** 2005 All. C.J. 985 Allahabad High Court (DB)	Cited by the petitioner regarding the 2004 assessment proceedings and subsequent orders in the connected writ litigation.	SCJ-047
33	**M/s Shokumbhari Pulp & Paper Mills Ltd. v. U.P. Power Corporation Ltd. & 3 others** 2014 (4) ADJ 225 Allahabad High Court (DB)	Writ Petition No. 13514 of 2014, decided 1.4.2014, finally determined the controversy as to applicability of the revised tariff rates determined by the U.P. Electricity Regulatory Commission on 19.10.2012, published on 23.10.2012 and notified on 25.10.2012; an identical challenge is allowed on the same terms.	SCJ-3144
34	**M/s Shri Gautam Motors Pvt. Ltd. v. U.P. Power Corporation Ltd.** Writ-C No. 12076 of 2004 (order dated 14.12.2016) Allahabad High Court (DB)	Recited in a 11.5.2023 listing order: Division Bench allowed the writ, relying on Amrawati Devi, Balwant Spinning Mills and Tata Hydro, and set aside a demand dated 19.02.2004 and a recovery bill of Rs. 5,93,227. Not applied in the reserved reasons.	SCJ-552
35	**Abdul Gani & Anr. v. State of U.P. & Ors.** Civil Misc. Writ Petition No. 15498 of 2008 Allahabad High Court (DB)	An assessment made only on the allegation of a tampered meter seal, without any evidence of how the seal was tampered or theft was effected, cannot stand.	SCJ-051
36	**Abdus Salam @ A. Salam v. Election Commission of India** 2004 (55) ALR 12 Allahabad High Court (DB)	There is nothing rigid about natural justice; the duty to hear does not always mean affording a personal hearing.	SCJ-032
37	**Allahabad Inter Prises v. State of U.P.** Writ-C No. 2788 of 2013 (Allahabad HC, DB) Allahabad High Court (DB)	A 'Protective Load' charge cannot be raised in the absence of any option exercised by the consumer for that facility.	SCJ-026
38	**Ashim @ Hassim v. State of U.P. & Another** Criminal Misc. Writ Petition No. 18729 of 2023, decided 2 December 2023 Allahabad High Court (DB)	(Relied on by the applicant for the need to specify which of several statutory offences is charged.)	SCJ-278
39	**Ashok Kumar v. State of U.P.** 2008 (72) ALR 43 Allahabad High Court (Division Bench)	A provisional/UUE assessment under s.126 read with Clause 6.8 requires a recorded conclusion of unauthorised use and an opportunity of hearing at the appropriate stages; an assessment de hors that procedure is illegal.	SCJ-165
40	**Ashok Kumar v. State of U.P.** 2008 (5) ALJ 383 Allahabad High Court	Relied on by the petitioner for the proposition that, where the MRI was not served, the assessment is in violation of natural justice and the consumer cannot be insisted upon to take the statutory remedy.	SCJ-706

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
41	**Benarsi Silk Palace v. Commr. of Income Tax** [1964] 52 ITR 220 (All) Allahabad High Court	Jurisdiction can be conferred only by statute, not by consent or acquiescence — an assessee cannot confer jurisdiction on the Income Tax Officer by waiving a statutory notice requirement.	SCJ-049
42	**Bhupendra Singh @ Bhupendra Singh Chauhan v. State of U.P. and 2 Others** order dated 22.8.2019 (Division Bench) Allahabad High Court	Relied on by the licensee for maintainability. As recited, the consumer was found using electricity unauthorisedly, agreed to a compounding fee of Rs. 20,000 to avoid prosecution under Section 135, was provisionally assessed at Rs. 1,27,295, and challenged a demand notice dated 23.05.2019 for both sums on the plea that compounding ended further liability. The Bench observed: 'The argument is completely misconceived inasmuch as payment of compounding fee is in respect of offence of theft is altogether distinct from unauthorized use of electricity for which the petitioner is liable to pay as per assessment.' This Court did not apply that observation.	SCJ-3293
43	**Srichand Jain v. State of U.P. and others** 2007 (2) AWC 1560 Allahabad High Court	Relied on by the petitioner with Clause 8.2(x)(g) and (h); the Court did not discuss the decision.	SCJ-3201
44	**Dakshinanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal, Lucknow & Ors.** Writ Petition No. 4237 (MS) of 2008, decided 6.1.2012 Allahabad High Court (Lucknow Bench)	Clause 8 of the UPERC (CGRF & Electricity Ombudsman) Regulations, 2007, in so far as it permits a licensee to represent to the Ombudsman against a CGRF order, is bad in law.	SCJ-049
45	**Dhani Ram v. Chief Engineer, Raj Ghat Project Betwa River Board** (2013) 5 ADJ 691 Allahabad High Court (Division Bench)	On declining to relegate a long-pending, fully-pleaded writ to the alternative remedy.	SCJ-164
46	**Dhirendra Kumar Rai v. State of U.P.** 2010 (28) LCD 1248 Allahabad High Court (DB)	Surveys precedent on suspension power under Rule 4, U.P. Government Servant (Discipline & Appeal) Rules, 1999, holding suspension warranted only for allegations serious enough to attract major penalty if established.	SCJ-116
47	**Diwakar Dutt Bhatt v. Life Insurance Corporation of India** (1998) 2 UPLBEC 1154 Allahabad High Court (Division Bench)	The bar of alternative remedy is a matter of self-imposed discipline; where the petition was entertained and pleadings exchanged, it is inexpedient to dismiss it on that ground.	SCJ-164
48	**Dr. Munni Lal v. State of U.P. and others** 2011 (6) ADJ 650 (DB) Allahabad High Court (DB)	Cited by the petitioner on the plea that a demand and recovery issued before a final assessment, and without a hearing, were contrary to the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005; the Court recorded the citation, admitted the writ, and did not apply the decision.	SCJ-3120

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
49	**Executive Engineer, Electricity Urban Distribution Division, Allahabad v. Electricity Ombudsman (Appellate Authority) and others** 2015 (2) ADJ 196 Allahabad High Court	Cited for the objection that the writ petition did not make a correct array of parties.	SCJ-2642
50	**Ghanshyam Gupta v. United India Insurance Co. Ltd. & Ors.** Civil Misc. Writ Petition No. 53188 of 2011, decided 14.9.2011 Allahabad High Court	Follows the same marginal-heading-not-aid-to-construction principle.	SCJ-059
51	**Hazi Mohd. Yaseen v. Paschimanchal Vidyut Vitran Nigam Ltd.** 2011 (10) ADJ 261 (DB) Allahabad High Court (DB)	Same procedural-fairness principle for s.126/Clause 8.1 assessment.	SCJ-117
52	**Heinz India Pvt. Ltd. v. State of U.P.** 2012 (4) AWC 3662 Allahabad High Court	Judicial review of administrative action is confined to legality, procedural propriety, and Wednesbury unreasonableness — illegality, irrationality, procedural impropriety, or abuse of power.	SCJ-061
53	**Indresh Patel @ Indreshwar Singh v. State of U.P. & 4 Others** Criminal Misc. Writ Petition No. 265 of 2023, decided 6.2.2013 (as cited) Allahabad High Court (DB)	The 24-hour requirement in the second proviso to s.135(1-A) is directory; no consequences are specified for its breach.	SCJ-278
54	**Inter College Kusmaul, Gorakhpur & Anr. v. State of U.P. & Ors.** 2006 (5) AWC 4436 Allahabad High Court (DB)	Expounds the maxims lex non cogit ad impossibilia, impotentia excusat legem and nemo tenetur ad impossibilia (the law does not compel the impossible).	SCJ-060
55	**Kali Das Wadhwani & Anr. v. Jagjiwan Das & Anr.** 1985 (2) ARC 533 Allahabad High Court	Jurisdiction cannot be conferred by consent, acquiescence or waiver where there is none; these factors are relevant only to pecuniary/territorial jurisdiction, not inherent jurisdiction, the absence of which renders a decree a nullity.	SCJ-049
56	**Kapil Gupta v. U.P. Power Corporation Ltd. and another** Writ Petition No. 31023 of 2014 Allahabad High Court	Cited by the licensee as holding that against a final assessment the consumer has a remedy by appeal under Section 127 of the Electricity Act, 2003; the Court recorded the citation and did not relegate the writ to that appeal.	SCJ-3191

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
57	**Lalit Kumar Kapoor v. Kanpur Electricity Supply Company, Kanpur** 2011 (10) ADJ 484 : 2012 (2) ALJ 63 Allahabad High Court	Where the period of unauthorised use could not be ascertained, the maximum period was used for the assessment.	SCJ-211
58	**LML Ltd., Kanpur v. State of U.P.** AIR 2001 Allahabad 321 Allahabad High Court (DB)	A tariff approved by the Regulatory Commission alone can be implemented by a licensee, which has no power to alter or vary it; a licensee circular inconsistent with the approved tariff is void and inoperative.	SCJ-094
59	**Maa Vind Vasini Industries v. Purvanchal Vidyut Vitran Nigam Ltd.** 2008 (1) ADJ 75 : 2008 (2) ALJ 456 (DB) Allahabad High Court (Division Bench)	The Clause 6.8 / s.126 procedure for assessing unauthorised use — recording and disclosing the evidence and affording a hearing — must be followed before a valid assessment/demand can be made.	SCJ-158
60	**Malhotra Ice Factory v. State of U.P. (Writ-C No. 8029 of 2007)** High Court of Judicature at Allahabad	The petitioner's earlier writ, disposed of on 09.11.2009, quashing the assessment order dated 05.02.2007 and remitting the matter to the Assessing Authority to pass a fresh order, with liberty to test the meter.	SCJ-2858
61	**Mirzapur Electric Supply Company Limited v. State of U.P. & Ors.** AIR 1975 All 29 Allahabad High Court	Nature and consequences of security-deposit requirements under electricity supply law.	SCJ-1979
62	**Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd.** (DB) Allahabad High Court (DB)	A tampered meter is also a 'defective meter' within Clause 5.6 (read with Clause 5.9(a)(ii)); where tampering (a foreign remote-sensing device) was not visible on inspection and was established only by a subsequent committee's opening of the meter, the consumer had a right under Clause 5.6(c)(iii) to independent testing.	SCJ-064
63	**Mohit Paper Mills Ltd. & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors.** 2012 (2) ALJ 469 Allahabad High Court	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	SCJ-3309
64	**Paschimanchal VVNL v. (owner) — judgment dated 18.11.2011 in Writ-C No. 20679 of 2010** Writ-C No. 20679 of 2010 (Allahabad HC, 18-11-2011) Allahabad High Court	The owner of premises is a 'consumer' and can be assessed under s.135 for theft on the premises even if let out; the assessment there was valid; the appeal was remanded only to examine the acquittal under Clause 8.2(X)(G)&(H).	SCJ-179

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
65	**Pawan Kumar Agrawal v. State of U.P. & Others** Writ Petition No. 31019 of 2007, judgment dated 12.10.2007 Allahabad High Court	M/s Laxmi Cotsyn Ltd. (a textile-dyeing industry) is not covered by Clause 3.4(a) and cannot be compelled to construct an independent feeder at its own cost; it is entitled to a new connection from the existing mixed feeder.	SCJ-123
66	**Petitioner's further catena on alternative remedy & disputed facts** Harbanslal Sahnia (2003) 2 SCC 107; Popcorn Entertainment (2007) 9 SCC 593; ABL International (2004) 3 SCC 553; Zonal Manager, Central Bank v. Devi Ispat (2010) 11 SCC 186; Gunwant Kaur (1969) 3 SCC 769; Century Spinning (1970) 1 SCC 582; Babubhai Muljibhai Patel (1974) 2 SCC 706; Arezzo Developers 2010 (6) ADJ 315; Oriental Bank of Commerce 2008 (3) ADJ 1; Ashok Kumar 2008 (6) ADJ 660; Himmatlal Harilal Mehta AIR 1954 SC 403; and, on levy requiring statutory authority, Ahmedabad Urban Development Authority (1992) 3 SCC 285, A.P. Pollution Board v. A.P. Rayons (1989) 1 SCC 44, Sri Niwas Budhaulia 2006 (1) AWC 930 Supreme Court / Allahabad HC	Cited by the petitioner for (a) alternative remedy being no bar and writ jurisdiction over disputed facts, and (b) a levy requiring specific statutory authority.	SCJ-032
67	**Prachi Leathers v. U.P. Power Corporation Ltd.** 2003 (6) AWC 5665 Allahabad High Court	Where power is taken surreptitiously/by theft (rather than under a licensee-sanctioned surcharge arrangement), a penalty rather than a mere surcharge is attracted.	SCJ-094
68	**Radha Krishna Cold Storage v. State of U.P. & Others** Writ Petition No. 19574 of 2008 Allahabad High Court (DB)	An appeal under s.127 lies against an order that is in substance an assessment order under s.126, regardless of whether it is mislabelled as passed under s.135.	SCJ-111
69	**Ram Bahadur v. State of U.P. and others** 2016 (11) ADJ 463 Allahabad High Court	Cited by the petitioner as holding that without compliance with the procedure of 'Section 6.3' and without an opportunity of hearing, no provisional or final assessment could be made; the Court recorded the citation, found no date of hearing on the licensee's papers, and did not apply the decision to quash the assessment.	SCJ-3191
70	**Roshan Lal v. State of U.P.** 2009 (9) ADJ 670 Allahabad High Court (Division Bench)	Existence of an alternative remedy is a self-imposed discipline, not a jurisdictional bar; dismissing a writ on that ground long after filing and exchange of pleadings may shut out the alternative remedy itself and is to be avoided.	SCJ-164

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
71	**Sanjay Singh v. State of U.P. and others** Writ-C No. 5519 of 2017 (Allahabad HC, DB), decided 09.02.2017 High Court of Judicature at Allahabad	Even where an FIR is under Section 135, assessment is carried out under Section 126 and the Special Court finally determines civil liability (Section 154(6)); the remedy is a Section 127 appeal, and the High Court declines Article 226 interference when that appeal is available.	SCJ-2224
72	**Sardar Hasan Siddique v. State Transport Appellate Tribunal** AIR 1986 All 132 Allahabad High Court (DB)	A tribunal of limited jurisdiction cannot derive jurisdiction apart from the statute; no consent can confer it, and any decision by such a tribunal without jurisdiction is a nullity.	SCJ-049
73	**Seema Mansoor v. U.P. Power Corporation Limited and others** 2015 (1) ALJ 44 Allahabad High Court	As quoted from paragraph 16: the licensee is obliged to supply on a proper application; every owner or occupier, including a tenant, has a statutory right to apply and obtain supply subject to the Electricity Act, 2003 and the Supply Code, 2005; an application cannot be refused for want of the landlord's consent; a lessee, tenant or occupier who submits an indemnity bond cannot be refused merely on that ground.	SCJ-3245
74	**Sharda Oil Industries Pvt. Ltd., Nunaihi v. Appellate Authority/Superintending Engineer, U.P. State Electricity Board and Another** 1994 SCC OnLine All 359 Allahabad High Court	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	SCJ-3309
75	**Sharvan Kumar Jain v. State of U.P. & 2 Others** Writ-C No. 25372 of 2015, decided on 4.5.2015 Allahabad High Court	Cited by the licensee as another Division Bench order taking a view similar to Bhupendra Singh. No separate holding is stated, and this Court did not apply it.	SCJ-3293
76	**Shwetanshu Kumar Ojha v. State of U.P. and 6 others** Writ-C No.35257 of 2022 (High Court of Allahabad) High Court of Judicature at Allahabad	Earlier proceedings in which the Managing Director of Purvanchal Vidyut Vitran Nigam Ltd. appeared in person and gave an undertaking (Circular Letter dated 09.01.2023) that officials would strictly follow the U.P. Electricity Supply Code, 2005 in theft/unauthorized-use assessments, and that action would be taken against erring officials.	SCJ-2215
77	**State of U.P. v. Aditya Prasad Srivastava** 2017 (2) ADJ 554 (DB) (LB) Allahabad High Court (DB) (Lucknow Bench)	Bench decision cited in the same catena on proof of charges in a departmental inquiry; no separate holding extracted.	SCJ-548
78	**State of U.P. v. Brij Bhushan Sharma** Writ Petition No. 474 (SB) of 2011 (Allahabad HC, DB) Allahabad High Court (DB)	The practice of the State filing frivolous writ petitions challenging tribunal orders is deprecated.	SCJ-039

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
79	**State of U.P. v. Kishori Lal** 2018 (9) ADJ 397 (DB) (LB) Allahabad High Court (DB) (Lucknow Bench)	Bench decision cited in the same catena on the establishment's burden in a departmental inquiry; no separate holding extracted.	SCJ-548
80	**State of U.P. v. Suresh Kumar** Writ Petition No. 506 (S/B) of 2011 (Allahabad HC, DB) Allahabad High Court (DB)	The State and its instrumentalities should refrain from filing frivolous petitions that waste the Court's time.	SCJ-039
81	**Tehri Girders Ltd. & Anr. v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.** Civil Misc. Writ Petition No. 38 of 2009, decided 15 October 2009 Allahabad High Court	Failure to furnish additional security does not amount to arrears; additional security is an advance payment of charges, not money due, and its non-furnishing entails only possible disconnection.	SCJ-1979
82	**Torrent Power Ltd. v. State of U.P.** Civil Misc. Writ Petition No. 41139 of 2012, decided 4-12-2013 (Allahabad HC) Allahabad High Court (Single Judge)	A Permanent Lok Adalat can entertain a compoundable-offence electricity dispute for conciliation, but on failure of conciliation cannot decide it on merits under s.22-C(8), because that provision ousts adjudicatory jurisdiction over any dispute relating to an offence irrespective of compoundability.	SCJ-159
83	**Varun Kumar Yadav v. State of U.P. & Others** 2025 (7) ADJ 710 Allahabad High Court	The 24-hour lodging requirement for a theft complaint is mandatory; a thing required to be done in a particular manner is void if done otherwise.	SCJ-278
84	**Vijay Pal Singh & Another v. Dakshinanchal Vidyut Vitran Nigam Ltd & others** Writ - C No. 60987 of 2005, 29.3.2010 Allahabad High Court (DB)	Unamended Code Clause 8.2(iv) assessing theft at three times the tariff was contrary to Section 126(6) (1.5 times) and ultra vires by Section 174; the petitioner was directed to pay 1.5 times the tariff applicable on the checking date. The effect of the 15.6.2007 amendment of s.126(6) to twice, without a matching Code amendment, was left open.	SCJ-678
85	**Vikas Yadav v. State of U.P. and Another** Writ No. 34804 of 2019 High Court of Judicature at Allahabad	If objections are filed, the Executive Engineer shall consider and decide them by a speaking order, most expeditiously, preferably within a month; any recovery shall abide that decision.	SCJ-3282
86	**Writ Petition No. 12748 of 2017 (decided 12 April 2017)** Allahabad High Court	Proposition not recorded.	SCJ-1647
87	**Writ Petition No. 7624 of 2021 (M/s Bismillah Rice Mill), decided on 25.03.2021** Allahabad High Court	An external device in the PT output circuit is theft under Clause 8.1 of the U.P. Electricity Supply Code, 2005, not a defective-meter case under Clause 5.6; the 28.01.2021 provisional notice was served on 02.02.2021 and no reply was filed, yet one more opportunity under Clause 8.1(a) and (b) was given.	SCJ-3235

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
88	**Zeeshan (Jeeshan) v. State of U.P. (Civil Misc. Writ Petition No. 7074 of 2009)** High Court of Judicature at Allahabad	Jeeshan's earlier writ, disposed of on 09.02.2009, permitting his objection/representation against the assessment to be decided only on his depositing 50% of the amount under citation within one month (the order-sheet records the number once as 'of 2001' and elsewhere as 'of 2009').	SCJ-2851

Table 2 — Supreme Court of India

177 authorities · 247 citations · 4 used in 5+ cases · 31 used in 2+ cases

Supreme Court authorities, ranked by distinct citing summaries. Most cited: Chairman, West Bengal State Electricity Board & Ors. v. Syed Mukbul Hossain & Ors. (10), Executive Engineer, Southern Electricity Supply Company of Orissa Ltd. (SOUTHCO) v. Sri Seetaram Rice Mill (10) and Narinder Chand Hem Raj & Others v. Lieutenant Governor, Administrator, Union Territory, Himachal Pradesh (8).

1 Chairman, West Bengal State Electricity Board & Ors. v. Syed Mukbul Hossain & Ors. 10 cases

(2009) 2 SCC 727 · Supreme Court

Followed 10

PROPOSITION 1 · USED IN 8 CASES

In the matter of theft of electrical energy, the assessment is referable to Section 126 and appeal is to be filed under Section 127.

PROPOSITION 2 · USED IN 1 CASE

In the matter of theft of electrical energy the assessment is referable to Section 126 and appeal is to be filed under Section 127 (paras 4 and 6).

PROPOSITION 3 · USED IN 1 CASE

In a theft-of-electricity case, the Supreme Court noted the right of appeal under s.127 of the Electricity Act, 2003.

SCJ-069 SCJ-111 SCJ-3107 SCJ-3108 SCJ-3109 SCJ-3110 SCJ-3111 SCJ-3112 SCJ-3113 SCJ-3114

2 Executive Engineer, Southern Electricity Supply Company of Orissa Ltd. (SOUTHCO) v. Sri Seetaram Rice Mill 10 cases

(2012) 2 SCC 108 · Supreme Court of India

Followed 4 · Relied on 4 · Distinguished 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Section 126 requires the assessing officer to inspect, form a conclusion of unauthorised use, provisionally assess, serve the order, hear objections, and pass a final assessment; a Section 127 appeal lies only against that final order. The High Court may entertain a writ against a provisional assessment on a jurisdictional issue, but must then remand merits to the assessing officer and not determine the demand.

PROPOSITION 2 · USED IN 1 CASE

Sections 126-127 of the Electricity Act, 2003 constitute a complete code; 'unauthorised use of electricity' under Explanation (b) is not exhaustively defined by its five sub-clauses and must be purposively construed to cover excess-load consumption regardless of tariff-category change; overdrawal is prejudicial to the public at large as it threatens the entire supply system.

PROPOSITION 3 · USED IN 1 CASE

Sections 126 and 135 of the 2003 Act operate in different, distinct fields with no common premise in law — s.126 covers unauthorised use even absent dishonest intent (a civil-law remedy without mens rea), while s.135 requires dishonest intent and falls within criminal jurisprudence; s.126 is intended to cover cases 'over and above' those specifically covered by s.135.

PROPOSITION 4 · USED IN 1 CASE

Cited by the petitioner as a judgment of the Supreme Court. Reliance was placed on paragraphs 15, 16, 17 and 22 for a distinction between Sections 126 and 135, and for the submission that the licensee's authorities were not attracted because the case was one of theft. Those paragraphs are not quoted, and this Court did not apply them.

+6 further formulations in the citing summaries, to the same effect.

SCJ-042 SCJ-061 SCJ-111 SCJ-147 SCJ-163 SCJ-380 SCJ-2198 SCJ-2224 SCJ-2636 SCJ-3293

3 Narinder Chand Hem Raj & Others v. Lieutenant Governor, Administrator, Union Territory, Himachal Pradesh 8 cases

1971 AIR 2399 · Supreme Court

Applied 8

PROPOSITION 1 · USED IN 5 CASES

As applied in the quoted Coordinate Bench: no direction could have been issued against the provisions of the Act and the Code by the Ombudsman.

PROPOSITION 2 · USED IN 3 CASES

No direction could have been issued against the provisions of the Act and the Code by the Ombudsman.

SCJ-490 SCJ-491 SCJ-492 SCJ-493 SCJ-494 SCJ-700 SCJ-701 SCJ-702

4 Whirlpool Corporation v. Registrar of Trade Marks, Mumbai 5 cases

(1998) 8 SCC 1 · Supreme Court

Applied 1 · Relied on 3 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Alternative statutory remedy does not bar a writ under Article 226 in at least three contingencies — enforcement of fundamental rights, violation of natural justice, or an order wholly without jurisdiction / where the vires of an Act is challenged; exhaustion is a rule of policy, convenience and discretion, not of law.

PROPOSITION 2 · USED IN 1 CASE

Alternative statutory remedy does not bar a writ under Article 226 where there has been a violation of natural justice (or enforcement of fundamental rights, or want of jurisdiction / vires). Exhaustion is a rule of policy, convenience and discretion, not of law.

PROPOSITION 3 · USED IN 1 CASE

Alternative statutory remedy does not bar a writ where there is a breach of natural justice, enforcement of fundamental rights, want of jurisdiction, or a challenge to vires; exhaustion is a rule of discretion, not law.

PROPOSITION 4 · USED IN 1 CASE

Alternative statutory remedy does not bar a writ where there is a jurisdictional defect, a challenge to vires, or a breach of natural justice; otherwise the High Court should decline to interfere.

+1 further formulation in the citing summaries, to the same effect.

SCJ-032 SCJ-153 SCJ-163 SCJ-165 SCJ-706

5 U.P. Power Corporation Ltd. & Ors. v. Anis Ahmad 4 cases

(2013) 8 SCC 491 · Supreme Court

Followed 1 · Relied on 1 · Distinguished 1 · Not recorded 1

PROPOSITION 1 · USED IN 1 CASE

The Consumer Grievance Redressal Forum and the Electricity Ombudsman are not fora competent to decide the correctness of bills / questions of assessment; a consumer's challenge to the correctness of a bill lies under the mechanism of the Electricity Supply Code (clause 6.5), not before the CGRF or the Ombudsman.

PROPOSITION 2 · USED IN 1 CASE

The Electricity Supply Code under s.50 need not provide, and does not relate to, assessment of charges for 'unauthorised use of electricity' under Section 126 or offences under Sections 135-140; these fall within Section 126/127's own separate statutory scheme.

PROPOSITION 3 · USED IN 1 CASE

Proceedings before a District Consumer Forum are not maintainable in view of this decision (as invoked by the petitioners).

SCJ-147 SCJ-406 SCJ-877 SCJ-1565

6 M/s Moti Lal Padampat Sugar Mills Ltd. v. State of U.P. and others 3 cases

AIR 1979 SC 621 · Supreme Court

Relied on 3

PROPOSITION 1 · USED IN 2 CASES

Waiver means the intentional abandonment of a right and must be made with full knowledge of the right; there is no presumption that every person knows the law, so a right cannot be treated as waived without knowledge of it.

PROPOSITION 2 · USED IN 1 CASE

Waiver means the abandonment of a right; it must be an intentional act with full knowledge of the right, and there is no presumption that everyone knows the law.

SCJ-153 SCJ-162 SCJ-2853

7 Bar Council of India v. Union of India 3 cases

(2012) 8 SCC 243 · Supreme Court

Relied on 2 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Chapter VI-A of the LSA Act, 1987 validly confers on Permanent Lok Adalats jurisdiction to conciliate and, failing settlement, adjudicate disputes concerning public utility services (including supply of power); not violative of Article 14 or the rule of law.

PROPOSITION 2 · USED IN 1 CASE

The vires of the Chapter VI-A provisions of the Legal Services Authorities Act, 1987 (constituting Permanent Lok Adalats) were upheld.

PROPOSITION 3 · USED IN 1 CASE

On the nature and scope of the Legal Services Authorities / Lok Adalat framework.

SCJ-025 SCJ-159 SCJ-2214

8 J.M.D. Alloys Ltd. v. Bihar State Electricity Board 3 cases

(2003) 5 SCC 226 : AIR 2003 SC 1354 · Supreme Court

Distinguished 3

PROPOSITION 1 · USED IN 1 CASE

Mere acceptance of a police final report by the Magistrate does not amount to a finding by the criminal court that theft of electricity was not committed, where the accused was not summoned, no charge was framed and no evidence recorded.

PROPOSITION 2 · USED IN 1 CASE

Where the period of unauthorised use cannot be established, the maximum (fallback) period may be taken for computing the assessment.

PROPOSITION 3 · USED IN 1 CASE

Cited by the petitioner for restoration of supply following an acquittal on the theft charge.

SCJ-211 SCJ-247 SCJ-2227

9 Khem Chand v. Union of India 3 cases

AIR 1958 SC 300 · Supreme Court

Relied on 1 · Referred 2

PROPOSITION 1 · USED IN 1 CASE

A 'reasonable opportunity of hearing' includes the opportunity to defend oneself by cross-examining the witnesses produced against him, to examine himself or other witnesses in support of his defence, and to make representation as to why the proposed action should not be taken.

PROPOSITION 2 · USED IN 1 CASE

A 'reasonable opportunity' of showing cause includes an opportunity of a personal hearing (in the service-inquiry context).

PROPOSITION 3 · USED IN 1 CASE

Lays down the content and standard of 'reasonable opportunity' of hearing to be afforded before an adverse order.

SCJ-032 SCJ-047 SCJ-1268

10 Madhya Pradesh Electricity Board v. Smt. Basantibai 3 cases

(1988) 1 SCC 23 · Supreme Court

Followed 3

PROPOSITION 1 · USED IN 1 CASE

Where there is no allegation of tampering, a dispute whether a meter is correct or faulty falls under s.26(6) of the IEA 1910 and must be decided by the Electrical Inspector, who alone may estimate the energy consumed (not exceeding six months) and fix the amount; the Board cannot itself raise or enforce a supplementary bill pending that determination.

PROPOSITION 2 · USED IN 1 CASE

A dispute over fraud in tampering with a meter, manipulating the supply line, or breaking the meter's body seal falls outside s.26(6) of the Indian Electricity Act, 1910; an Electrical Inspector has no jurisdiction over such fraud disputes, which are distinct from genuine meter-correctness/defectiveness disputes.

PROPOSITION 3 · USED IN 1 CASE

Section 26(6) has no application where the dispute concerns fraud or tampering with the meter / breaking of the body seal.

SCJ-151 SCJ-167 SCJ-262

11 Oryx Fisheries Private Limited v. Union of India and Others 3 cases

(2010) 13 SCC 427 · Supreme Court

Distinguished 3

PROPOSITION 1 · USED IN 1 CASE

Cited by the petitioner, under the spelling Orxy Fisheries, with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively. It did not extract this decision.

PROPOSITION 2 · USED IN 1 CASE

A quasi-judicial authority must act with an open mind at the show-cause stage and must not confront the noticee with definite conclusions of guilt (paras 23, 24, 27 and 29 quoted). Distinguished: in that case necessary facts were not specifically recorded in the show-cause notice.

PROPOSITION 3 · USED IN 1 CASE

A show-cause notice that pronounces the charge already 'proved beyond doubt' prejudges the issue and is bad; the noticee must not be met with a concluded mind.

SCJ-163 SCJ-3209 SCJ-3309

12 State of Haryana v. Bhajan Lal 3 cases

AIR 1992 SC 604 · Supreme Court

Followed 3

PROPOSITION 1 · USED IN 1 CASE

Courts should not interfere with investigation or quash an FIR unless no cognizable offence is ex-facie discernible from the allegations, or a statutory restriction bars the police from investigating.

PROPOSITION 2 · USED IN 1 CASE

Courts will not interfere with investigation or quash an FIR unless no cognizable offence is ex-facie discernible from the allegations, or a statutory restriction bars investigation.

PROPOSITION 3 · USED IN 1 CASE

Illustrative categories in which inherent power under s.482 Cr.P.C. may be exercised to quash (quoted in full).

SCJ-102 SCJ-539 SCJ-3081

13 State of U.P. v. Mohd. Nooh 3 cases

AIR 1958 SC 86 · Supreme Court

Referred 3

PROPOSITION 1 · USED IN 1 CASE

The rule requiring exhaustion of statutory remedies before a writ is one of policy, convenience and discretion, not of law; certiorari has issued despite the availability of other adequate legal remedies.

PROPOSITION 2 · USED IN 1 CASE

The rule requiring exhaustion of statutory remedies before a writ is one of policy, convenience and discretion, not of law; certiorari has issued despite adequate alternative remedies.

PROPOSITION 3 · USED IN 1 CASE

The rule requiring exhaustion of statutory remedies before a writ is one of policy, convenience and discretion, not of law; certiorari has issued despite other adequate legal remedies.

SCJ-153 SCJ-165 SCJ-706

14 Transmission Corporation of A.P. Ltd. & Ors. v. Sri Rama Krishna Rice Mill 3 cases

(2006) 3 SCC 74 · Supreme Court

Relied on 2 · Distinguished 1

PROPOSITION 1 · USED IN 1 CASE

In an electricity assessment dispute, merely taking note of the objections filed is not compliance with the relevant rules; natural justice is not a straitjacket formula and varies with the circumstances.

PROPOSITION 2 · USED IN 1 CASE

Material relied upon against a consumer must be disclosed to him; mere noting of his objections is not sufficient compliance with natural justice, though no strait-jacket procedure applies.

PROPOSITION 3 · USED IN 1 CASE

Explains the standard of reasonable opportunity of hearing in the context of an electricity assessment.

SCJ-032 SCJ-047 SCJ-051

15 Zandu Pharmaceutical Works Ltd. v. Mohd. Saraful Haq 3 cases

2005 SCC (Cr.) 283 · Supreme Court

Followed 1 · Not recorded 2

PROPOSITION 1 · USED IN 1 CASE

At the quashing stage only a prima facie case is examined (para 10 as cited).

SCJ-539 SCJ-2555 SCJ-2747

16 M/s Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra 2 cases

AIR 2021 SC 1918 · Supreme Court

Followed 1 · Not recorded 1

PROPOSITION 1 · USED IN 1 CASE

Only those cases in which no prima facie case is made out can be considered on an application under section 482 Cr.P.C.

SCJ-539 SCJ-2556

17 M/s Popcorn Entertainment v. City Industrial Development Corporation 2 cases

2007 (4) JT (SC) 70 · Supreme Court

Referred 2

PROPOSITION 1 · USED IN 1 CASE

A writ may be entertained despite an alternative remedy where the action is without jurisdiction, or in breach of natural justice, or violates fundamental rights.

PROPOSITION 2 · USED IN 1 CASE

On when a writ petition will be entertained despite the availability of an alternative statutory remedy.

SCJ-040 SCJ-158

18 M/s Prem Cottex v. Uttar Haryana Bijli Vitran Nigam Ltd. 2 cases

(2021) 20 SCC 200 · Supreme Court of India

Referred 2

PROPOSITION 1 · USED IN 1 CASE

The petitioner relied on it for the contention that electricity dues for a period beyond two years are not recoverable under Section 56(2). The Court rejected that contention where the dues were continuously shown as recoverable arrears, and did not discuss the judgment. The report is printed as M/S Prem Cottex vs. Uttar Harayana Bijli Vitran Nigam Limited.

PROPOSITION 2 · USED IN 1 CASE

Rahamatullah Khan was distinguished on facts; the licensee was still prevented from disconnecting and left to other remedies.

SCJ-283 SCJ-3326

19 A.V. Venkateswaran, Collector of Customs v. Ramchand Sobhraj Wadhwani 2 cases

AIR 1961 SC 1506 · Supreme Court (Constitution Bench)

Referred 2

PROPOSITION 1 · USED IN 1 CASE

The exceptions to the alternative-remedy rule are not exhaustive; a discretion vests in the High Court to entertain a petition and grant relief notwithstanding an adequate alternative remedy.

PROPOSITION 2 · USED IN 1 CASE

The exceptions to the alternative-remedy rule are not exhaustive; a discretion vests in the High Court to entertain a petition notwithstanding an adequate alternative remedy.

SCJ-153 SCJ-706

20 Assistant Engineer (D1), Ajmer Vidyut Vitran Nigam Limited v. Rahamatullah Khan alias Rahamjulla 2 cases

(2020) 4 SCC 650 · Supreme Court of India

Applied 1 · Relied on 1

PROPOSITION 1 · USED IN 1 CASE

The aspect that dues continuously shown as recoverable arrears of charges for electricity supplied are not barred by time under Section 56(2) was considered in this judgment. The High Court relied on that consideration in rejecting the time-bar plea and did not set out the ratio.

PROPOSITION 2 · USED IN 1 CASE

Section 56(2) does not preclude a supplementary demand after two years in case of mistake, but it does not empower disconnection to recover that demand.

SCJ-283 SCJ-3326

21 Balwant Spinning Mills Ltd. v. U.P. State Electricity Board 2 cases

(1997) 6 SCC 740 · Supreme Court

Followed 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

A meter-correctness dispute is decided by the Electrical Inspector, who may assess consumption for the preceding six months where the meter has ceased to be correct.

PROPOSITION 2 · USED IN 1 CASE

Named only as a case relied on in Gautam Motors; no ratio extracted.

SCJ-262 SCJ-552

22 Government of Maharashtra v. Deokar's Distillery 2 cases

(2003) 5 SCC 669 · Supreme Court of India

Followed 1 · Applied 1

PROPOSITION 1 · USED IN 1 CASE

Cited with two other Supreme Court decisions for the proposition that if the basic order is not under challenge, a consequential order cannot be subjected to challenge — applied here so that the recovery certificate could not be challenged without a challenge to the bill. The order cites 'Government of Maharastra vs. Deokar's Distellery; (2003) SCC 669'; volume completed from the standard report of the same cause title.

PROPOSITION 2 · USED IN 1 CASE

Cited for the proposition that a writ to quash a consequential order is not maintainable. Applied so that the 05.08.2022 recovery order, which only specified the method of recovering the loss already directed in the 06.07.2021 punishment, could not be independently challenged while the statutory appeal against that punishment was pending.

SCJ-3177 SCJ-3258

23 Gujarat Urja Vikas Nigam Ltd. v. Essar Power Ltd. (GJ-II) 2 cases

(2008) 4 SCC 755 · Supreme Court

Relied on 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Section 86(1)(f) of the Electricity Act, 2003 is a special provision for adjudication of disputes between a licensee and a generating company and overrides the general Section 11 of the Arbitration and Conciliation Act, 1996; after the 2003 Act, such disputes can be resolved only by the State Commission or an arbitrator appointed by it.

PROPOSITION 2 · USED IN 1 CASE

Flagged that the law on Tribunal composition under the Electricity Act may call for review in light of Madras Bar Association (MJ-II).

SCJ-026 SCJ-130

24 K.C. Ninan v. Kerala State Electricity Board & Ors. 2 cases

Civil Appeal No. 2109-2110 of 2004 · Supreme Court of India

Relied on 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Described as the judgment which followed Rahamatullah Khan on the same continuous-showing aspect of Section 56(2). The High Court relied on it without extracting any holding. Cited only by those civil-appeal numbers.

PROPOSITION 2 · USED IN 1 CASE

Electricity constitutes a 'public good', and the courts' interpretation of the law must foster this position.

SCJ-064 SCJ-3326

25 PTC India Ltd. v. Central Electricity Regulatory Commission 2 cases

(2010) 4 SCC 603 · Supreme Court (Constitution Bench)

Relied on 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Tariff fixation under Section 62 is quasi-judicial (and appealable under s.111), while Section 61 is the enabling provision for framing generic regulations.

PROPOSITION 2 · USED IN 1 CASE

The term 'tariff', though undefined in the Electricity Act, 2003, includes not only rate-fixation but also the rules and regulations relating to it.

SCJ-010 SCJ-147

26 Punjab State Electricity Board v. Vishwa Caliber Builders Private Limited 2 cases

(2010) 4 SCC 539 · Supreme Court

Followed 2

PROPOSITION 1 · USED IN 1 CASE

An Ombudsman commits jurisdictional error, absent statutory authorisation, by directing regularisation of unauthorised electricity use and refund of amounts properly charged for consumption in excess of sanctioned load, even where the licensee's own infrastructural delay contributed to the situation.

PROPOSITION 2 · USED IN 1 CASE

In the absence of a provision in the Act or Regulations, an Electricity Ombudsman commits jurisdictional error by directing regularisation of unauthorised use of electricity or refund of alleged excess charges.

SCJ-123 SCJ-147

27 Rajeev Hitendra Pathak & others v. Achyut Kashinath Karekar & another 2 cases

2011 Law Suit (SC) 871 · Supreme Court of India

Distinguished 2

PROPOSITION 1 · USED IN 2 CASES

Relied on by the licensee for the proposition that there is no power of review or recall under the Electricity Act, 2003 and that the Civil Procedure Code applies to a tribunal only to a limited extent, so the appellate authority could not have recalled or reviewed its order.

SCJ-3154 SCJ-3155

28 Ram Chandra Prasad Sharma and others v. State of Bihar and another 2 cases

AIR 1967 SC 349 · Supreme Court

Distinguished 2

PROPOSITION 1 · USED IN 1 CASE

Invoked by the revisionist for the proposition that the summoning court had to examine whether the accused's act was dishonest under Section 39 of the Indian Electricity Act, 1910.

PROPOSITION 2 · USED IN 1 CASE

In a criminal trial for theft of electrical energy under Section 39 of the Indian Electricity Act, 1910, mens rea is a relevant consideration.

SCJ-051 SCJ-637

29 State of Bihar v. P.P. Sharma 2 cases

1992 Supp (1) SCC 222 · Supreme Court

Followed 1 · Relied on 1

PROPOSITION 1 · USED IN 1 CASE

A person against whom mala fides or bias is imputed must be impleaded eo nomine and given an opportunity to meet the allegation; absent this, no enquiry into mala fides can be made.

PROPOSITION 2 · USED IN 1 CASE

Only those cases in which no prima facie case is made out can be considered on an application under section 482 Cr.P.C.

SCJ-051 SCJ-539

30 The State of Orissa v. Madan Gopal Rungta 2 cases

1952 SCR 28 · Supreme Court of India (Constitution Bench)

Followed 2

PROPOSITION 1 · USED IN 1 CASE

Article 226 cannot be used to grant interim relief as the only and final relief; interim relief is available only as ancillary to a final relief obtainable in a proceeding actually pending and to be decided on merits before that court.

PROPOSITION 2 · USED IN 1 CASE

Cited for the proposition that when the writ petition is not maintainable, no interim relief can be granted while dismissing it.

SCJ-095 SCJ-3258

31 Vice-Chancellor, Banaras Hindu University v. Shrikant 2 cases

(2006) 11 SCC 42 · Supreme Court

Distinguished 2

PROPOSITION 1 · USED IN 1 CASE

A statutory authority's action, though otherwise bona fide, must be fair and reasonable; an order made in ignorance of the prescribed procedure or on extraneous considerations is vitiated in law and subject to judicial review.

PROPOSITION 2 · USED IN 1 CASE

(Cited among the mala fide-doctrine authorities; held inapplicable on facts.)

SCJ-051 SCJ-061

Cited in a single case (146 authorities — included for completeness)

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
32	**Shri Sitaram Sugar Company Ltd. & Anr. v. Union of India & Ors.** (1990) 3 SCC 223 Supreme Court	Any act of the repository of power is open to challenge if in conflict with the Constitution, the governing Act, or general principles of law, or so arbitrary/unreasonable that no fair-minded authority could have made it.	SCJ-061

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
33	**A.I.S.B. Officers Federation & Others v. Union of India & Others** JT 1996 (8) SC 550 Supreme Court	A petitioner cannot raise mala fide allegations against persons who have not been impleaded as respondents.	SCJ-051
34	**A.K. Kraipak & Ors. v. Union of India and others** AIR 1970 SC 150 Supreme Court of India	Principles of natural justice supplement the statute; an opportunity of hearing is required even where the statute is silent.	SCJ-644
35	**Additional District Magistrate (Rev.), Delhi Admn. v. Siri Ram** (2000) 5 SCC 451 Supreme Court	Conferment of rule-making power does not enable the delegate to make rules travelling beyond, inconsistent with, or repugnant to the enabling Act.	SCJ-147
36	**Aligarh Muslim University v. Mansoor Ali Khan** AIR 2000 SC 2783 Supreme Court	Following S.L. Kapoor v. Jagmohan, where on admitted/indisputable facts only one conclusion is possible, breach of natural justice need not vitiate the order (a narrow exception).	SCJ-032
37	**Arnesh Kumar v. State of Bihar** (2014) 8 SCC 273 Supreme Court	Police officers are not to arrest accused unnecessarily, nor Magistrates to authorise detention casually, for offences punishable with imprisonment of seven years or less (with or without fine); notice of appearance under Section 41-A Cr.P.C. is to be served, and arrest requires satisfaction of the Section 41 parameters with recorded reasons.	SCJ-340
38	**Authorised Officer (Land Reforms) v. M.M. Krishnamurthy Chetty** (1998) 9 SCC 138 Supreme Court	Even orders which may not be strictly legal become final and binding between the parties if they are not challenged before the superior courts; a dispute that has attained finality cannot be reopened.	SCJ-552
39	**Bachhaj Nahar v. Nilima Mandal** (2008) 17 SCC 491 Supreme Court	Cited by the petitioner; no ratio extracted.	SCJ-552
40	**Balram Prasad v. Kunal Saha & Ors.** Supreme Court	The court is sceptical of a strait-jacket multiplier method and may deviate from it to avoid over- or under-compensation, determining just, fair and reasonable compensation on the facts.	SCJ-025
41	**Barkat Ali v. Badri Narain** AIR 2008 SC 1272 Supreme Court of India	Cited with two other Supreme Court decisions for the proposition that if the basic order is not under challenge, a consequential order cannot be subjected to challenge.	SCJ-3177

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
42	**Bharat Aluminium Co. v. Kaiser Aluminium Technical Services Inc.** 2012 (9) SCC 552 Supreme Court of India	Quoted, as applying Madan Gopal Rungta, for the observation that a right to obtain an interlocutory injunction is not a cause of action and cannot stand on its own.	SCJ-3258
43	**Bhavnagar University v. Palitana Sugar Mills (P) Ltd.** (2003) 2 SCC 111 : AIR 2003 SC 511 Supreme Court	A little difference in facts or additional facts may make a lot of difference in the precedential value of a decision.	SCJ-247
44	**Bihar State Electricity Board v. Parmeshwar Kumar Agarwala** (1996) 4 SCC 686 Supreme Court	The Supply Code / conditions of supply have statutory flavour and are to be strictly followed by the parties.	SCJ-032
45	**Bombay Electricity Supply and Transport Undertaking v. Laffans (India) (P) Ltd.** (2005) 4 SCC 327 Supreme Court	Section 26(6) is attracted only when the meter is not correct; it does not apply to fraud/trick/tampering, and a licensee who removes the meter without a reference loses the material evidence and cannot revise the demand.	SCJ-262
46	**Brahm Dutt v. Union of India** Supreme Court	Where a body performs both advisory/regulatory and adjudicatory functions, it may be appropriate (though a matter for legislative wisdom) to create two separate bodies.	SCJ-130
47	**Calcutta Discount Co. Ltd v. ITO, Companies Distt.** Supreme Court	Where an executive authority acts without jurisdiction and thereby subjects a person to lengthy proceedings and harassment, the High Court may issue prohibition or certiorari.	SCJ-706
48	**Calcutta Discount Co. Ltd. v. Income Tax Officer, Companies Distt. I** AIR 1961 SC 372 Supreme Court (Constitution Bench)	Where an executive authority acts without jurisdiction and thereby subjects a person to lengthy proceedings and harassment, the High Court may issue prohibition/certiorari notwithstanding the executive character of the act.	SCJ-153
49	**Canara Bank v. G.S. Jayarama** 2022 SCC OnLine SC 656 Supreme Court of India	A Permanent Lok Adalat's powers are wider than a Lok Adalat's; conciliation proceedings under Section 22-C are mandatory; and it may decide a dispute on merits (so long as the dispute does not relate to an offence) only after the proposed terms of settlement are not agreed to or are rejected.	SCJ-2214
50	**Canara Bank v. P.R.N. Upadhyaya & Others** (1998) 6 SCC 526 Supreme Court	A Banking Ombudsman (analogous statutory scheme) is bound by governing circulars/directions and cannot issue directions in ignorance of them.	SCJ-123

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
51	**Carborundum Universal Ltd. v. CBDT** 1989 Supp (2) SCC 462 Supreme Court	Where a statutory provision does not exclude natural justice, an opportunity of being heard is to be assumed, especially in quasi-judicial proceedings.	SCJ-032
52	**Cauvery Water Disputes Tribunal, In re** 1993 Supp (1) SCC 96(2) : AIR 1992 SC 22 Supreme Court	A legislature may remove the basis of a court's decision but cannot direct the instrumentalities of the State to disobey or disregard a court's decision.	SCJ-255
53	**Chandigarh Administration v. Jagjit Singh** 1995 (1) SCC 745; AIR 1995 SC 705 Supreme Court	The mere fact an authority passed a particular (possibly illegal) order for another similarly-situated person cannot found a discrimination-based claim to have that illegality repeated; Article 14 does not envisage negative equality.	SCJ-123
54	**Chandra Kishore Jha v. Mahabir Prasad** JT 1999 (7) SC 256 Supreme Court	Where a statute provides for a thing to be done in a particular manner, it must be done in that manner and no other.	SCJ-170
55	**Chandroji Rao v. CIT** 1970 (2) SCC 23 Supreme Court	A marginal heading cannot control the interpretation of a statutory provision.	SCJ-059
56	**CIT v. Dhadi Sahu** 1994 Supp (1) SCC 257 Supreme Court	A law changing the forum does not affect pending actions unless a contrary intention is clearly shown; the forum of appeal is a vested right, not pure procedure.	SCJ-008
57	**CIT, Bangalore v. R. Sharadamma** (1996) 8 SCC 388 Supreme Court	Where an authority is validly seized of a matter on a reference, it does not lose jurisdiction on a later amendment; change of forum is not mere procedure but a vested right.	SCJ-008
58	**Collector, Distt. Gwalior & Anr. v. Cine Exhibitors P. Ltd. & Anr.** AIR 2012 SC 1239 Supreme Court	(Follows and applies S. Sethuraman on jurisdiction not being conferrable by consent.)	SCJ-049
59	**D.P. Kesari v. Board of Directors of Allahabad Agricultural Institute** (2009) 12 SCC 272 Supreme Court	Cited by the petitioner; no ratio extracted.	SCJ-552
60	**Doypack Systems Pvt. Ltd. v. Union of India** (1988) 2 SCC 299 Supreme Court	Principles of statutory interpretation, including reading provisions in their context to give effect to legislative intent.	SCJ-158

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
61	**Dr. Arun Kumar v. Nagar Nigam, Bareilly** 2017 (2) ADJ 638 Supreme Court	Where a statute requires a thing to be done in a particular manner, doing it otherwise is void and illegal.	SCJ-278
62	**Dr. Mahachandra Prasad Singh v. Chairman, Bihar Legislative Council & Ors.** (2004) 8 SCC 747 Supreme Court	A delegate's power under delegated legislation is strictly ancillary; it does not enable extension of the enactment's scope, and cannot be used to widen the Act's purposes or depart from its ends.	SCJ-147
63	**Dr. Meena Chaudhary @ Dr. Meena P.N. Singh v. BSES Rajdhani Power Ltd.** Writ Petition (Crl.) No. 103 of 2013 (SC, 25-06-2013) Supreme Court	A consumer's right to a new electricity connection on deposit of the estimate is independent of a disputed/undetermined theft-assessment liability, which cannot be a ground to refuse the connection.	SCJ-223
64	**Durga Enterprises (P) Ltd. v. Principal Secretary, Govt. of U.P.** (2004) 13 SCC 665 Supreme Court	Where the High Court has entertained a writ petition in which pleadings are complete, it ought to decide the case on merits rather than relegate the parties to the alternative remedy.	SCJ-164
65	**East Coast Railway & Anr. v. Mahadev Appa Rao & Ors.** 2010 (7) SCC 678 Supreme Court	Whether an enquiry/verification was necessary before an adverse order depends on the facts; the authority must be alive to the material on which it purports to decide, not act mechanically or under impulse.	SCJ-061
66	**Electronics Corporation of India Ltd. v. Secretary, Revenue Department, Govt of A.P.** (1999) 4 SCC 458 : AIR 1999 SC 1734 Supreme Court (Constitution Bench)	On the tests for treating a Government company/corporation as an instrumentality or 'State'.	SCJ-158
67	**Energy Watchdog v. Central Electricity Regulatory Commission** (2017) 14 SCC 80 Supreme Court	Whenever generation or supply of electricity is inter-State, the Central Commission is the appropriate regulator; whenever intra-State, the State Commission is — jurisdiction turns on whether generation and sale occurs within one State or more than one State.	SCJ-110
68	**Executive Engineer, Electricity Distribution Division-II v. Chairman, Permanent Lok Adalat** (2015) 113 ALR 603 Supreme Court	On the jurisdiction of a Permanent Lok Adalat in electricity disputes.	SCJ-159

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
69	**F.N. Roy v. Collector of Customs, Calcutta** AIR 1957 SC 648 Supreme Court (Constitution Bench)	There is no rule of natural justice that at every stage a person is entitled to a personal hearing.	SCJ-032
70	**Federation of Railway Officers Association v. Union of India** AIR 2003 SC 1344 Supreme Court	Allegations of mala fide cannot be vaguely made and must be specific; the official said to be involved must be made a party to meet the allegations.	SCJ-051
71	**Ferro Alloys Corporation Ltd. v. A.P. State Electricity Board & Anr.** 1993 Supp (4) SCC 136 Supreme Court of India	The true nature of the transaction is one of advance payment of charges for consumption of electricity estimated for a period of approximately three months, to be kept made good from month to month.	SCJ-1979
72	**Garikapati Veeraya v. N. Subbiah Choudhry** AIR 1957 SC 540 Supreme Court	Leading five-principle statement: the right of appeal is a vested substantive right governed by the law at the institution of the suit/proceeding, preserved through all appellate stages, and can be taken away only by express enactment or necessary intendment.	SCJ-008
73	**General Officer Commanding-in-Chief & Anr. v. Dr. Subhash Chandra Yadav & Anr.** (1988) 2 SCC 351 Supreme Court	For a rule to have statutory effect, it must (1) conform to the provisions of the statute under which it is framed, and (2) come within the scope of the rule-making power; failing either, the rule is void.	SCJ-147
74	**GKN Driveshafts (India) Ltd. v. Income Tax Officer & Ors.** (2002) 125 Taxman 963 (SC) Supreme Court of India	A challenge to a notice for (provisional) assessment is premature; the assessee should file its reply / objection rather than rush to the writ court.	SCJ-1060
75	**Global Energy Limited & Anr. v. Central Electricity Regulatory Commission** (2009) 15 SCC 570 Supreme Court	A general 'for carrying out the purpose of the Act' rule-making delegation cannot be exercised to bring into existence substantive rights, obligations or disabilities not contemplated by the parent Act.	SCJ-147
76	**Gopaldas Udhavdas Ahuja and another v. Union of India and others** (2004) 7 SCC 33 Supreme Court of India	Cited for the effect of an acquittal on the licensee's demand/assessment and the consumer's entitlement to restoration.	SCJ-2227
77	**Gujarat Urja Vikas Nigam Ltd. v. Tarini Infrastructure Ltd.** (2016) 8 SCC 743 Supreme Court	Tariff incorporated in a power purchase agreement is not a pure act of volition alterable only by mutual consent.	SCJ-010

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
78	**Guntaiah & Others v. Hambamma & Others** (2005) 6 SCC 228 Supreme Court	Titles/marginal notes have the effect of only marginal notes and are not a legitimate aid to construction of a section or rule.	SCJ-059
79	**Gunwant Kaur v. Municipal Committee, Bhatinda** (1969) 3 SCC 769 Supreme Court	In a petition under Article 226 the High Court has jurisdiction to try issues both of fact and law.	SCJ-040
80	**Harbanslal Sahnia & Another** Supreme Court	A writ petition against the State/instrumentality arising from a contractual obligation is maintainable notwithstanding disputed questions of fact, including for consequential monetary relief, unless action is arbitrary/unreasonable violating Article 14.	SCJ-112
81	**Himalayan Coop. Group Housing Society v. Balwan Singh** (2015) 7 SCC 373 Supreme Court	A counsel's admission binds only if unequivocal and authorised; the client is not bound by an unauthorised concession, nor by statements on matters of law or legal conclusions; the court should ascertain authority before accepting a concession that surrenders substantial rights.	SCJ-635
82	**Hindustan Zinc Ltd. v. RERC** (2015) 12 SCC 611 Supreme Court	Subordinate legislation, including regulations framed under statutory authority, carries a presumption of constitutionality; the burden lies on the challenger to establish invalidity.	SCJ-110
83	**HMT Ltd. v. Mudappa** JT 2007 (3) SC 112 Supreme Court	Malice in law doctrine applied to administrative/service action.	SCJ-126
84	**Hoosein Kasam Dada (India) Ltd. v. State of M.P.** AIR 1953 SC 221 Supreme Court	Unless the new Act expressly or by necessary implication is retrospective, the right of appeal crystallises on institution and a new deposit condition cannot be imposed.	SCJ-008
85	**In re: Natural Resources Allocation, Special Reference No. 1 of 2012** (2012) 10 SCC 1 Supreme Court (Constitution Bench)	Clarifies that the binding 'law declared' under Article 141 is the ratio decidendi culled from the judgment as a whole, not every observation.	SCJ-130
86	**Indian Aluminium Co. v. State of Kerala** (1996) 7 SCC 637 : AIR 1996 SC 1431 Supreme Court	The legislature cannot by mere declaration overrule a judicial decision, but may render it ineffective by validly altering the law fundamentally and retrospectively.	SCJ-255

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
87	**Indira Sohanlal v. Custodian of Evacuee Property, Delhi** AIR 1956 SC 77 Supreme Court	Observed that the right of appeal in a pending action may be a substantive vesting right, but left the question open.	SCJ-008
88	**J.N. Banavalikar v. Municipal Corporation of Delhi** AIR 1996 SC 326 Supreme Court	In the absence of impleadment of the person who allegedly passed a mala fide order, a contention of malice in fact should not be countenanced.	SCJ-051
89	**K.K. Bhalla v. State of U.P.** Supreme Court	Cited in the string of malice-in-law authorities at para 42.	SCJ-126
90	**K.S. Rashid & Son v. Income Tax Investigation Commission** Supreme Court	Where an alternative remedy exists it is ordinarily a sound exercise of discretion to refuse a writ, unless there are good grounds to the contrary.	SCJ-706
91	**Karnal Improvement Trust v. Prakashwanti** (1995) 5 SCC 159 Supreme Court	Acquiescence does not confer jurisdiction, and an erroneous interpretation should not be perpetuated defeating legislative intent.	SCJ-049
92	**Kihoto Hollohan v. Zachillhu** 1992 Supp (2) SCC 651 Supreme Court (Constitution Bench)	A body discharging judicial functions of far-reaching effect must have the essential 'trappings of the Court', including presence of judicial members.	SCJ-130
93	**Kiran Singh v. Chaman Paswan** AIR 1954 SC 340 Supreme Court	A defect of jurisdiction strikes at the very authority of the Court to pass any decree and cannot be cured even by consent of parties.	SCJ-049
94	**Kunj Behari Lal Butail & Ors. v. State of H.P. & Ors.** (2000) 3 SCC 40 Supreme Court	Where a general rule-making power is conferred, the object of the enactment must be found and the rules tested against whether they fall within its scope; where the delegation is not general, the rules must be protected by the limits prescribed by the parent Act.	SCJ-147
95	**M. Rathinaswami & Ors. v. State of Tamil Nadu & Ors.** (2009) 5 SCC 625 Supreme Court	To save a statutory provision from unconstitutionality, a restricted or extended interpretation may sometimes be required.	SCJ-094
96	**M.A.A. Annamalai v. State of Karnataka** (2010) 8 SCC 524 Supreme Court	A person who had ceased to be a director before the alleged offences, and against whom the FIR contained no allegation, could not be compelled to face trial (para 37 as extracted).	SCJ-665

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
97	**Madhya Pradesh Electricity Board v. Union of India & Ors.** 2006 (9) SCALE 194 Supreme Court	The Electricity (Supply) Act, 1948 provides for the constitution and composition of State Electricity Boards, each State being enjoined to constitute one.	SCJ-091
98	**Madhya Pradesh State Cooperative Dairy Federation Ltd. v. Rajnesh Kumar Jamindar** (2009) 15 SCC 221 Supreme Court	(Cited among the mala fide-doctrine authorities; held inapplicable on facts.)	SCJ-051
99	**Madras Bar Association v. Union of India & Anr.** (2014) 10 SCC 1 Supreme Court (Constitution Bench)	Held the National Tax Tribunal Act unconstitutional on grounds including inadequate provision for judicial members; separation of powers/judicial review are part of the basic structure.	SCJ-130
100	**Mahanta Moti Das v. S.P. Sahid** Supreme Court	Where a question involves investigation of complicated facts and recording of evidence, the High Court may refuse to decide it in a writ proceeding.	SCJ-040
101	**Maharashtra State Electricity Distribution Co. Ltd. v. Datar Switchgear Ltd.** (2010) 10 SCC 479 Supreme Court	One cannot presume that a chairman of a company is responsible for all acts committed by or on behalf of the company.	SCJ-665
102	**The Management of Hotel Imperial, New Delhi v. Hotel Workers' Union** AIR 1959 SC 1342 Supreme Court	The power to suspend is a creature of statute or contract, to be exercised keeping in view the letter and spirit of the statute.	SCJ-116
103	**Manager, Government Branch Press v. D.B. Belliappa** Supreme Court	Cited in the string of malice-in-law authorities at para 42.	SCJ-126
104	**Manujendra Dutt v. Purnedu Prosad Roy Chowdhury** AIR 1967 SC 1419 Supreme Court	Deletion of a provision (there, s.29 of the Calcutta Thika Tenancy Act) does not divest the forum of jurisdiction over proceedings validly transferred and pending before it, absent a contrary provision.	SCJ-008
105	**Maria Cristina De Souza Sodder v. Amria Zurana Pereira Pinto** (1979) 1 SCC 92 Supreme Court	The right of appeal is a substantive right that vests when the lis commences and is not affected by a repeal unless the repealing enactment expressly or by necessary implication takes it away.	SCJ-008

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
106	**Md. Asfak Alam v. State of Jharkhand** Criminal Appeal No. (S) 2207 of 2023, decided 31.07.2023 Supreme Court	Reiterates the Arnesh Kumar guidelines on arrest for offences punishable with seven years or less.	SCJ-340
107	**Mool Chand Yadav v. Roza Buland Sugar Mills** 1980 (3) SCC 484 Supreme Court of India	Cited for the proposition that if a statutory appeal is decided in the appellant's favour after the impugned order has been given effect, the appeal becomes infructuous. Distinguished: in that case a stay application in the statutory appeal had been rejected; that was not the case here.	SCJ-3258
108	**Mukesh Kumar Agrawal v. State of U.P.** JT 2009 (13) SC 643 Supreme Court	Elaborates the malice-in-law doctrine as applicable to administrative/statutory action taken without just cause.	SCJ-126
109	**New Okhla Industrial Development Authority v. Kendriya Karmachari Sahkari Grih Nirman Samiti** 2006 (II) RJ 1365 Supreme Court	The High Court has jurisdiction under Article 226 to try issues of fact and law, but where the petition raises complex questions of fact requiring evidence, it should ordinarily decline and relegate the party to the normal remedy.	SCJ-040
110	**Ningamma & Anr. v. United India Insurance Co. Ltd.** Supreme Court	A claimant is entitled to determination of just and reasonable compensation under different heads.	SCJ-025
111	**Nizam's Institute of Medical Sciences v. Prasanth S. Dhananka & Ors.** Supreme Court	In assessing compensation for grievous personal injury, the court strikes a balance and awards just compensation under different heads, taking guidance from Motor Vehicles Act principles.	SCJ-025
112	**P. Chitharanja Menon v. A. Balakrishnan** AIR 1977 SC 1720 Supreme Court of India	Cited with two other Supreme Court decisions for the proposition that if the basic order is not under challenge, a consequential order cannot be subjected to challenge. The order spells the name 'P.Chithranja Menon vs. A.Balakrishnan'.	SCJ-3177
113	**P. Mohanan Pillai v. State of Kerala** Supreme Court	Cited in the string of malice-in-law authorities at para 42.	SCJ-126
114	**Padmaraje R. Kadambande v. CIT** 1992 (3) SCC 432 Supreme Court	A marginal heading (e.g. 'compensation') does not control the operation or interpretation of the section.	SCJ-059
115	**Pareena Swarup v. Union of India** (2008) 14 SCC 107 Supreme Court	Discussed in the context of tribunals created to exercise functions earlier performed by regular judicial forums (PMLA Adjudicating Authority).	SCJ-130

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
116	**Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd. & Ors.** AIR 2009 SC 647 Supreme Court of India	A transferee/subsequent occupant with no privity of contract cannot be asked to pay a predecessor's electricity dues (which are not a charge on the premises), but a distributor may stipulate clearance of the premises' arrears as a condition of a fresh connection; provisions like Clause 4.3(g)/(h), applying pro-rata on a legally sub-divided (composite) premises, are valid safeguards.	SCJ-2201
117	**Pratap Chandra Mehta v. State Bar Council of Madhya Pradesh & Ors.** (2011) 9 SCC 573 Supreme Court	Courts should give delegated-legislation provisions purposive construction to perpetuate the parent Act's object, while ensuring the rules remain within the field circumscribed by that Act.	SCJ-147
118	**Punjab Electricity Board v. Zora Singh** Supreme Court	Cited in the string of malice-in-law authorities at para 42.	SCJ-126
119	**R.C. Cooper v. Union of India** (1970) 1 SCC 248 : AIR 1970 SC 564 Supreme Court	A company registered under the Companies Act has a separate legal personality distinct from its shareholders.	SCJ-158
120	**R.P. Kapur v. State of Punjab** AIR 1960 SC 866 Supreme Court	Only those cases in which no prima facie case is made out can be considered on an application under section 482 Cr.P.C.	SCJ-539
121	**Raghunath Rai Bareja & Anr. v. Punjab National Bank & Ors.** Supreme Court	The first and foremost rule of construction is the literal rule; where the provision is unambiguous, the court reads the statute as it is without adding words (approving Hiralal Ratanlal, Harshad S. Mehta and Patangrao Kadam).	SCJ-025
122	**Ramakrishna Poultry (P) Ltd. v. R. Chellappan** (2009) 16 SCC 743 Supreme Court	Where a landowner purchased land after a transmission-line survey/routing process was already underway, the appropriate remedy is a practical accommodation (e.g. raising line height/clearance) rather than re-routing an established transmission line, especially given the larger public interest.	SCJ-097
123	**Ramchandra Dagdu Sonavane v. Vithu Hira Mahar** (2009) 10 SCC 273 Supreme Court	The doctrine of res judicata (including constructive res judicata under Explanation IV, s.11 CPC) applies broadly, barring re-litigation of matters that were or ought to have been raised in an earlier proceeding.	SCJ-097
124	**Ramesh Singh v. Cinta Devi** (1996) 3 SCC 142 Supreme Court	A vested right of appeal under the old Motor Vehicles Act is not dislodged by the new Act; the appellant may appeal without the pre-deposit required by the proviso to s.173 of the new Act.	SCJ-008
125	**Rashid Ahmed v. Municipal Board, Kairana** Supreme Court	Existence of an adequate legal remedy is a factor in the grant of writs, not an absolute bar.	SCJ-706

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
126	**Raymond Ltd. & Anr. v. M.P. Electricity Board & Ors.** (2001) 1 SCC 534 Supreme Court	Where the consumer has not committed to a fixed minimum-guarantee sum, the licensee can enforce minimum-guarantee charges only by ensuring the minimum guaranteed supply; if the licensee fails to supply, the consumer is exonerated from paying minimum-guarantee charges.	SCJ-030
127	**Raymond Ltd. v. State of Chhattisgarh & Ors.** (2007) 3 SCALE 341 Supreme Court	Interpretation of a term in one statute cannot be done with reference to its definition contained in another statute.	SCJ-091
128	**Reliance Infrastructure v. State of Maharashtra** (2019) 3 SCC 352 Supreme Court	Regulatory decisions of expert bodies should be accorded deference unless shown to be wholly irrational, ultra vires the parent statute, or violative of fundamental rights.	SCJ-110
129	**Roop Singh Negi v. Punjab National Bank** (2009) 2 SCC 570 Supreme Court	Cited with Saroj Kumar Sinha and Kharak Singh for the establishment's obligation to prove charges by legal evidence in a departmental inquiry.	SCJ-548
130	**S. Sethuraman v. R. Venkataraman & Ors.** AIR 2007 SC 2499 Supreme Court	If jurisdiction cannot be conferred by consent, consent equally cannot clothe an authority to exercise jurisdiction in an illegal manner.	SCJ-049
131	**S.J.S. Business Enterprises (P) Ltd. v. State of Bihar** (2004) 7 SCC 166 Supreme Court	A writ petition is not automatically barred merely because a parallel civil suit was filed and later withdrawn; the court may call upon the party to elect between remedies rather than dismissing outright.	SCJ-097
132	**S.M.S. Pharmaceuticals Ltd. v. Neeta Bhalla** (2005) 8 SCC 89 Supreme Court	A complaint under section 141 of the Negotiable Instruments Act must specifically aver that the accused was in charge of and responsible for the conduct of the company's business.	SCJ-665
133	**S.R. Venkatraman v. Union of India** AIR 1979 SC 49 Supreme Court	Malice in law means an act done wrongfully and without reasonable/probable cause, though not necessarily with ill-will; an order founded on non-existent or misrepresented facts is vitiated by malice in law.	SCJ-126
134	**S.S. Bola v. B.D. Sardana** (1997) 8 SCC 522 : AIR 1997 SC 3127 Supreme Court	A legislature cannot directly override a judicial decision but, under its plenary powers, may enact a law fundamentally altering the provisions that were the basis of the decision; judicial review is a basic feature.	SCJ-255

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
135	**Satender Kumar Antil v. Central Bureau of Investigation & Another** (2022) 10 SCC 51 Supreme Court	Bail applications are to be considered in accordance with the principles laid down in this decision (guidelines on arrest, appearance, and expedition of bail).	SCJ-279
136	**Seth Banarsi Dass (dead) by LRs v. District Magistrate and Collector, Meerut** (1996) 2 SCC 689 Supreme Court	Recovery proceedings are equivalent to execution proceedings under the CPC; an auction sale without deciding objections is a material irregularity vitiating the sale.	SCJ-170
137	**Sharad Kumar Sanghi v. Sangita Rane** (2015) 12 SCC 781 Supreme Court	Cited by the petitioner with the other director-liability authorities; the Court did not extract or discuss it.	SCJ-665
138	**Shiba Shankar Mohapatra v. State of Orissa** (2010) 12 SCC 471 Supreme Court	Cited by the petitioner; no ratio extracted.	SCJ-552
139	**Shiv Shakti Coop. Housing Society, Nagpur v. Swaraj Developers** (2003) 6 SCC 659 Supreme Court	An appeal is a continuation of the original proceedings; the right of appeal is statutory and, once conferred, a vested substantive right, distinct from the inherent right to sue.	SCJ-008
140	**Sir Chunilal V. Mehta & Sons Ltd. v. Century Spg. & Mfg. Co. Ltd.** AIR 1962 SC 1314 Supreme Court (Constitution Bench)	Test for a 'substantial question of law': one of general public importance or directly and substantially affecting the parties' rights, not finally settled or free from difficulty.	SCJ-010
141	**Somesh Tiwari v. Union of India** (2009) 2 SCC 592 Supreme Court	Malice in law/fact distinction and its application to vitiate administrative action taken on an improper or misrepresented basis.	SCJ-126
142	**St. John's Teachers Training Institute v. Regional Director, National Council for Teacher Education & Anr.** (2003) 3 SCC 321 Supreme Court	Delegated legislation may supplement, but not supplant, the parent enabling Act; what is permitted is delegation of ancillary/subordinate legislative functions or filling up of details.	SCJ-147
143	**State of A.P. & others v. Pioneer Builders, A.P.** (2006) 12 SCC 119 Supreme Court of India	Cited for the contention that a section 80 CPC notice is a condition precedent to a suit against the Government or its public officer and cannot be dispensed with unless urgency is shown.	SCJ-3170

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
144	**State of Bihar & Others v. Subhash Singh** 1997 (4) SCC 430 Supreme Court	State action must be carried out in accordance with the Constitution and within legal limits; judicial review can examine constitutionality and procedural legality of administrative action.	SCJ-061
145	**State of Bombay v. Supreme General Films Exchange Ltd.** AIR 1960 SC 980 Supreme Court	To the same effect on the vested right of appeal.	SCJ-008
146	**State of Karnataka & Anr. v. H. Ganesh Kamath & Ors.** (1983) 2 SCC 402 Supreme Court	It is a well-settled principle that conferment of rule-making power does not enable the rule-making authority to make a rule travelling beyond, or inconsistent with, the enabling Act.	SCJ-147
147	**State of Maharashtra v. Laljit Rajashi Shah & Ors.** AIR 2000 SC 937 Supreme Court	A person deemed a public servant under an analogous 'deemed to be public servant' provision for Maharashtra Cooperative Societies employees was not a public servant for purposes of the (former) Prevention of Corruption Act, 1947.	SCJ-091
148	**State of Orissa v. Bimal Kumar Mohanty** AIR 1994 SC 2296 Supreme Court	Suspension should not be passed as an administrative routine or mechanically; it requires consideration of the gravity of alleged misconduct and the evidence, applying the disciplinary authority's mind.	SCJ-116
149	**State of Orissa v. Mamata Mohanty** (2011) 3 SCC 436 Supreme Court	Article 14 is not meant to perpetuate illegality and does not envisage negative equality; an inadvertent benefit granted to others does not confer a right to the same relief.	SCJ-123
150	**State of T.N. & Anr. v. P. Krishnamurthy & Ors.** (2006) 4 SCC 517 Supreme Court	Courts must consider the nature, object and scheme of the enabling Act when assessing subordinate legislation's validity; where inconsistency is not with a specific provision but with the object/scheme of the parent Act, the court should proceed with caution before declaring invalidity.	SCJ-147
151	**State of Uttar Pradesh v. Saroj Kumar Sinha** (2010) 2 SCC 772 Supreme Court	Cited for the settled principle that in a departmental inquiry the establishment must prove the charges by leading evidence; the inquiry officer is not to treat the charge-sheet as self-proving.	SCJ-548
152	**State of Uttaranchal v. Kharak Singh** (2008) 8 SCC 236 Supreme Court	Cited for natural justice in disciplinary inquiries: evidence must be led and the delinquent given opportunity to meet it.	SCJ-548

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
153	**State of W.B. v. Rupa Ice Factory (P) Ltd.** (2004) 10 SCC 635 Supreme Court	Where the finding is that a consumer tapped electric energy directly bypassing the meter circuit, s.26(6)'s reference-to-Electrical-Inspector procedure has no application; following M.P. Electricity Board v. Basantibai and JMD Alloys v. Bihar SEB, tampering/theft/pilferage cases fall outside s.26's scope entirely.	SCJ-151
154	**State of West Bengal v. Dabasish Mukherjee** (2011) 14 SCC 187 Supreme Court	Equality before law is a positive concept, not enforceable negatively; an inadvertent illegal benefit to one person does not confer a legal right on others to the same benefit.	SCJ-123
155	**Sub-Divisional Officer (P), UHBVNL v. Dharam Pal** (2006) 12 SCC 222 Supreme Court	In cases of meter tampering, there is no scope for reference to an Electrical Inspector under s.26(6).	SCJ-151
156	**Sukhdev Singh & Ors. v. Bhagatram Sardar Singh Raghuvanshi & Anr.** (1975) 1 SCC 421 Supreme Court (Constitution Bench)	Statutory bodies cannot use rule/regulation-making power to enlarge their powers beyond the scope intended by the legislature; delegated rules/regulations establish patterns of conduct subordinate to the statute.	SCJ-147
157	**Sunil Bharti Mittal v. Central Bureau of Investigation** (2015) 4 SCC 609 Supreme Court	There is no vicarious criminal liability unless the statute specifically provides so (para 42 as extracted).	SCJ-665
158	**Surya Dev Rai v. Ram Chander Rai and Others** 2003 (6) SCC 675 Supreme Court of India	Supervisory jurisdiction under Article 227 is not to be used ordinarily for every wrong order or error of law unless manifest injustice is shown; it is to be used sparingly.	SCJ-3170
159	**Swarn Singh Chand v. Punjab State Electricity Board** Supreme Court	Cited in the string of malice-in-law authorities at para 42, in an electricity-board context.	SCJ-126
160	**Tamil Nadu Generation and Distribution Corporation Ltd. v. PPN Power Generating Company Pvt. Ltd.** (2014) 11 SCC 53 Supreme Court	Adjudicatory functions ought not to be conducted by a State Commission in the absence of a judicial Member, at least for disputes not fairly relative to tariff fixation or advisory functions.	SCJ-130

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
161	**Tata Hydro Electric Power Supply Co. Ltd. v. Union of India** (2003) 4 SCC 172 Supreme Court	Named only as a case relied on in Gautam Motors; no ratio extracted.	SCJ-552
162	**Tinsukhia Electricity Supply Co. Ltd. v. State of Assam & Ors.** (1989) 3 SCC 709 Supreme Court (Constitution Bench)	A statute must be construed so as to make it effective and operative ('ut res magis valeat quam pereat'); courts should avoid interpretations reducing a provision to futility.	SCJ-111
163	**U.P. Rajkiya Nirman Nigam Ltd. v. Indure Pvt. Ltd.** AIR 1996 SC 1373 Supreme Court	(Same principle as Karnal Improvement Trust — acquiescence does not confer jurisdiction.)	SCJ-049
164	**Uma Nath Pandey & Ors. v. State of U.P. & Anr.** (2009) 12 SCC 40 Supreme Court	Natural justice is another name for common-sense justice; adherence to its principles is of supreme importance whenever a quasi-judicial body or an administrative action involving civil consequences is in issue.	SCJ-092
165	**Union of India v. Jai Prakash Singh** (2007) 10 SCC 712 Supreme Court	Cited by the petitioner; no ratio extracted.	SCJ-552
166	**Union of India v. Jyoti Prakash Mitter** AIR 1971 SC 1093 Supreme Court (Constitution Bench)	Article 217(3) does not guarantee a right of personal hearing; a mere denial of an oral representation does not, without more, vitiate proceedings.	SCJ-032
167	**Union of India v. Madras Bar Association** (2010) 11 SCC 1 Supreme Court (Constitution Bench)	Tribunals substituting for court jurisdiction should possess the same independence/security/capacity as the courts they replace; members discharging judicial functions must be drawn from sources possessing legal expertise.	SCJ-130
168	**Union of India v. Prakash P. Hinduja & Another** AIR 2003 SC 2612 Supreme Court	Section 482 Cr.P.C. power to quash criminal proceedings may be exercised (sparingly, with circumspection) where the FIR/complaint even taken at face value discloses no offence, or the uncontroverted allegations/evidence do not disclose commission of any offence, or there is an express legal bar to continuance of proceedings.	SCJ-114
169	**Union of India v. S.C. Parashar** (2006) 3 SCC 167 Supreme Court	Cited by the petitioner on 01.11.2023: an amalgam of minor and major penalties is contrary to the principle in Parashar. The reserved judgment did not apply or decide that point.	SCJ-548

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
170	**United Commercial Bank Ltd. v. Their Workmen** AIR 1951 SC 230 Supreme Court	No acquiescence or consent can give a jurisdiction to a court of limited jurisdiction which it does not possess.	SCJ-049
171	**United India Insurance Co. Ltd. v. Ajay Sinha** Supreme Court	A Permanent Lok Adalat does not act merely as an arbitrator whose award may be challenged; Parliament has given it an adjudicatory role to decide the matter.	SCJ-025
172	**Uttar Pradesh Power Corporation Ltd. v. National Thermal Power Corporation Ltd. & Ors.** (2011) 12 SCC 400 Supreme Court	The Central Electricity Regulatory Commission is an expert body for tariff determination; courts should ordinarily not interfere with tariff determinations.	SCJ-130
173	**V.K. Majotra v. Union of India** (2003) 8 SCC 40 Supreme Court	Cited by the petitioner; no ratio extracted.	SCJ-552
174	**Vishal Agrawal v. Chhattisgarh State Electricity Board** (2014) 3 SCC 696 Supreme Court	Section 151's complaint route does not exclude FIR and police investigation; offences under the Electricity Act are tried by the Cr.P.C., so a charge-sheet for section 135 is competent (paras 20, 21 and 23 as extracted).	SCJ-665
175	**Vitthalbhai Narangbhai Patel v. CST** AIR 1967 SC 344 Supreme Court	To the same effect on the vested right of appeal.	SCJ-008
176	**Western Electricity Supply Co. of Orissa Ltd. v. Baba Baijanath Roller and Flour Mill (P) Ltd.** (2014) 105 ALR 762 (SC) Supreme Court	Section 26 is relevant only to a dispute about the correctness of a meter; a question of fraud/tampering falls outside it.	SCJ-262
177	**Whirlpool Corporation (established exceptions to alternative remedy)** Supreme Court	The alternative-remedy rule does not operate as an absolute bar where the writ petition seeks enforcement of a fundamental right, alleges violation of natural justice, or challenges an order/proceeding as wholly without jurisdiction or the vires of an Act.	SCJ-112

Table 3 — Other courts

35 authorities · 37 citations · 0 used in 5+ cases · 2 used in 2+ cases

High Courts other than Allahabad, tribunals, the Privy Council and other forums recorded in this cut. Most cited: M/s JMD Alloys Limited v. Bihar State Electricity Board (2), Meenu Gupta v. State of U.P. (2) and Shri Bholu v. State of U.P. (1).

1 M/s JMD Alloys Limited v. Bihar State Electricity Board 2 cases

(referenced via Modern Rice Mill) · Patna High Court

Followed 2

PROPOSITION 1 · USED IN 1 CASE

Sending a disputed Secure Meter for testing to its manufacturer's own accredited laboratory is likely to create a strong bias in favour of the supplier/manufacturer, even if the laboratory is accredited.

PROPOSITION 2 · USED IN 1 CASE

Testing of a Secure Meter by its own manufacturer is likely to create a strong bias in favour of the supplier/manufacturer.

SCJ-059 SCJ-071

2 Meenu Gupta v. State of U.P. 2 cases

Writ-C No. 3872 of 2018, decided on 31.1.2018

Not recorded 2

PROPOSITION NOT RECORDED.

SCJ-2014 SCJ-2015

Cited in a single case (33 authorities — included for completeness)

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
3	**Shri Bholu v. State of U.P.** Writ-C No. 21927 of 2016, order dated 15.7.2016	Proposition not recorded.	SCJ-1507
4	**M/s. Classic Color Lab v. Assistant Engineer and Others (Kerala HC)** 2014 (3) KLT 57 Kerala High Court (Division Bench)	Following Seetaram Rice Mill, an assessment under s.126(6) for unauthorised use (there, industrial-tariff electricity misused for commercial purposes) must be at the rate applicable to the higher-tariff category actually used, not the consumer's nominal category; a purposive (not textual) interpretation of s.126 is required.	SCJ-147
5	**Smt. Kudusia Begum v. State of U.P.** Writ-C No. 27451 of 2021, decided on 23.10.2021	Proposition not recorded.	SCJ-2802
6	**Smt. Minakshi Patra v. Secretary Irrigation and Power, Govt. of Orissa & others** AIR 1999 Orissa 137 Orissa High Court	Cited for the contention that, on an application under section 80(2) CPC, the court below was required to look into urgency and could not have entered into the merits of the relief.	SCJ-3170
7	**Aaysha Begum v. Purvanchal Vidhut Vitrana Nigam Ltd.** Writ-C No. 26778 of 2023, decided on 10.08.2023	Proposition not recorded.	SCJ-3743

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
8	**Application U/S 482 No. 11139 of 2023** Application U/S 482 No. 11139 of 2023, order dated 09.11.2023	Proposition not recorded.	SCJ-3386
9	**Ashok Kumar and Others v. State of U.P. and Others** 2008 (6) ADJ 607	Proposition not recorded.	SCJ-2315
10	**Bimal Kumar Gupta v. Special Police Establishment Lokayukt** 2001 (1) MPHT 330; (2001) 3 JLJ 2 Madhya Pradesh High Court (Single Judge)	Employees of the Madhya Pradesh State Electricity Board are not 'public servants' for purposes of prosecution under the Prevention of Corruption Act, since s.81 of the 1948 Act only deems them public servants under IPC s.21, and a 'deemed provision' cannot extend to another statute (relying on State of Maharashtra v. Laljit Rajashi Shah).	SCJ-091
11	**Chandler v. D.P.P.** [1964] A.C. 763 House of Lords	Side notes/marginal headings cannot be used as an aid to statutory construction; they are mere catchwords, not enacted as part of the Act.	SCJ-059
12	**Col. R.K. Nayar (Retd.) v. BSES Rajdhani Power Ltd. & Ors.** ILR (2007) II Delhi 769 Delhi High Court	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	SCJ-3309
13	**Colonial Sugar Refining Co. Ltd. v. Irving** (1905) AC 369 Privy Council	The right of appeal is a substantive right that vests on the initiation of proceedings; only procedural statutes may be retrospective, not those affecting the right of appeal.	SCJ-008
14	**Dakshin Haryana Bijli Vitran Nigam Ltd. & Ors. v. Megh Raj** Revision Petition No. 3144 of 2007, decided 11.9.2008 National Consumer Disputes Redressal Commission	The power to compound under Section 152 presupposes a pending prosecution, acceptance of the sum amounting to an acquittal.	SCJ-003
15	**Delhi Cloth & General Mills Co. Ltd. v. Income Tax Commissioner, Delhi** ILR 9 Lahore 284 Privy Council	Only a statute dealing with procedure may have retrospective effect; a statute conferring substantive rights, including the right of appeal, does not.	SCJ-008
16	**Harvinder Motors v. B.S.E.S. Rajdhani Power Ltd.** 2006 SCC OnLine Del 1404 Delhi High Court	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	SCJ-3309

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
17	**Hotel Adityaz Ltd. v. M.P. Kshetra Vidyut Vitran Co. Ltd.** AIR 2016 (NOC) 39 (M.P.) Madhya Pradesh High Court	Theft cases fall only under Section 135, and Section 126 has no application to them.	SCJ-042
18	**Jagdish Narayan v. North Delhi Power Limited & Anr.** ILR (2007) II Delhi 957 Delhi High Court	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	SCJ-3309
19	**JMD Alloys Ltd.** Patna High Court	Sending a meter for testing to the accredited laboratory of its manufacturer/supplier (Secure Meters Ltd.) is likely to create a strong bias on the part of the supplier/manufacturer.	SCJ-161
20	**Kirpa Singh v. Ajaypal Singh** 1928 ILR 10 Lahore 165 (FB) Lahore High Court	Right of appeal governed by law at the date of institution of the suit, not at the date of decision or of filing the appeal.	SCJ-008
21	**Krishna Chandra Mishra v. State of U.P. and another** Section 482 Petition No. 807/2021, order dated 19.02.2021	Proposition not recorded.	SCJ-2557
22	**Madhur Garg v. North Delhi Power Ltd.** 129 (2006) DLT 2013 High Court of Delhi	Cited by the petitioner-franchisee in support of denying a fresh connection until previous electricity dues on the premises are cleared.	SCJ-2201
23	**McEldowney v. Forde** (1971) AC 632 House of Lords	In reviewing subordinate legislation's validity, a court's task is threefold: determine the meaning of the enabling words, determine the meaning of the subordinate legislation, and decide whether the latter complies with the former.	SCJ-147
24	**Misc. Petition No. 31705 of 2009 (Allahabad High Court)**	Proposition not recorded.	SCJ-766
25	**Modern Terry Towels Ltd. v. Gujarat Electricity Board** AIR 2003 Guj 63 Gujarat High Court	A broken seal, without more, does not establish theft of electricity.	SCJ-273
26	**Nana bin Aba v. Skeku bin Andu** (1908) ILR 32 Bom 337 Bombay High Court	Followed Colonial Sugar Refining on the vested, substantive nature of the right of appeal.	SCJ-008

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27	**North Delhi Power Ltd. (NDPL) v. DERC** 2007 ELR (APTEL) 193 Appellate Tribunal for Electricity	Restricting a utility's claim by disallowing reasonably anticipated expenditure and deferring it to the truing-up exercise is not prudence; truing up only fills the gap between actual and anticipated expenses.	SCJ-010
28	**Punjab State Electricity Board v. Guru Nanak Agriculture Engineering Works** AIR 2007 P&H 57 Punjab and Haryana High Court	Relied on by the plaintiff for the proposition that the civil court's jurisdiction is not barred in such an electricity dispute.	SCJ-207
29	**S.N. Mukherji v. Union of India** AIR 1990 SC 1984	Proposition not recorded.	SCJ-641
30	**Seema Mansoor v. U.P. Power Corporation and 3 Others** Writ C No. 28295 of 2014, order dated 26.05.2014	Proposition not recorded.	SCJ-3392
31	**Shishir Jain**	Proposition not recorded.	SCJ-2607
32	**Sk. Jafar Ali v. West Bengal State Electricity Distribution Company Limited** AIR 2010 Cal 84 Calcutta High Court	The phrase 'applicable for the relevant category of services' in s.126(6) should be construed as the rate applicable to the category the consumer belongs to, not the higher category of the unauthorised use.	SCJ-147
33	**State Load Despatch Centre v. GERC** 2015 SCC OnLine APTEL 50 Appellate Tribunal for Electricity	'Truing up' means the adjustment of actual amounts incurred against the estimated/projected amounts determined under the ARR.	SCJ-010
34	**Tirumala Modern Rice Mill v. Transmission Corporation of A.P. Ltd. (AP Transco)** AIR 2007 AP 265 Andhra Pradesh High Court	Parts XIV/XV of the Electricity Act do not contemplate provisional assessment of energy pilfered in theft cases; where a consumer accepts and deposits a provisional assessment without demur, no further liability/action may be taken.	SCJ-111
35	**Uttar Pradesh Power Corporation Ltd. v. Anis Ahmad** 2013 (8) SCC 419	Proposition not recorded.	SCJ-1886